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THE COURT OF APPEALS OF THE STATE OF WASHINGTON, DIVISION TWO

IN RE THE PERSONAL RESTRAINT OF NICHOLAS JONATHON MCCOSHUM

PERSONAL RESTRAINT PETITION AND OPENING BRIEF

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I. PETITION FOR RELIEF

Nicholas Jonathon McCoshum respectfully petitions this Court for relief from the unlawful restraint arising from criminal convictions and sentences imposed in violation of the state and federal constitutions and Washington law. This Petition is supported by the argument and authorities contained in the Opening Brief.

II. STATUS OF PETITIONER

Mr. McCoshum is restrained in the custody of the Department of Corrections, as Inmate No. 897374. He entered DOC custody on November 10, 2022, pursuant to the challenged judgment and sentence imposed in Clark County Superior Court Cause Number 21-1-

01329-06. On October 3, 2024, Mr. McCoshum was resentenced under that cause number.[1]

Mr. McCoshum is housed at the Washington State Penitentiary for eighty-one months with an estimated earned release date of October 10, 2027. His maximum confinement day is December 30, 2028. When released from total confinement, he must serve eighteen months in community custody.

III. INADEQUACIES OF OTHER REMEDIES

In his direct appeal, this Court denied Mr. McCoshum's challenges to his convictions.[2] This Court found Mr. McCoshum received ineffective assistance of counsel at sentencing and remanded for resentencing. Mandate was filed on May 20, 2024.

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[1] An amended judgment and sentence was entered. This is affixed hereto as Exhibit No. 1.

[2] 57561-2-II (2024).

Mr. McCoshum's only available means to challenge the illegality of his restraint is through a personal restraint petition.

IV. TIMELINESS OF PETITION

This Petition is filed within one year of mandate and is timely. RCW 10.73.090(3)(b).

V. PRIOR PETITIONS

Mr. McCoshum has not previously filed a personal restraint petition. This Petition is not successive. RCW 10.73.140.

VI. STANDARD OF REVIEW

Personal restraint petitions are intended as an avenue of judicial review to prevent and remedy governmental oppression. *In re Grantham*, 168 Wn.2d 204, 227 P.3d 285 (2010). For claims of illegal restraint where there has been prior judicial review, relief requires a petitioner to make a threshold showing of:

- A constitutional error resulting in actual and substantial prejudice or

- A nonconstitutional error resulting in a total miscarriage of justice.

In re Gentry, 170 Wn.2d 711, 714, 245 P.3d 766 (2010).

VII. GROUNDS FOR RELIEF

Mr. McCoshum's restraint arising from the convictions and sentences imposed in Cause Number 21-1-01329-06 is illegal as the result of numerous violations of state and federal constitutional protections justifying relief through this Petition. RAP 16.4(c)(2). Additionally, material facts exist that were not previously presented also constitute grounds for relief. RAP 16.4(c)(3), (5).

The grounds for relief are assigned with the following errors:

ERROR NO. 1
The Government Failed To Disclose A Federal Law Enforcement Report Evidencing The Antique Pistol Mr. McCoshum Possessed Was Not A Firearm Under Federal Law, Which Was Favorable As Corroborating His Belief He Did Not Possess A Firearm-In-Fact.

ERROR NO. 2
Trial Counsel's Failure To Investigate And Argue The Pertinent Defense Of The Lawful Use Of Force And Challenged The Knowledge Element Of Unlawful Possession Of A Firearm Was Ineffective Assistance That Denied Mr. McCoshum A Fair Trial.

ERROR NO. 3
Trial Counsel's Failure To Interview Or Call Witnesses Possessing Favorable Evidence Was Prejudicially Deficient Performance Violating Mr. McCoshum's Right To Present A Defense And Denying Him A Fair Trial.

ERROR NO. 4
Trial Counsel's Failure To Request Redaction Of The Three Judgments Admitted To Prove Mr. McCoshum Was Disqualified From Possessing A Firearm Was Prejudicially Deficient Performance.

ERROR NO. 5
The Government Committed Misconduct By Eliciting Testimony It Knew Or Should Have Known Was False.

VIII. STATEMENT OF THE CASE

On July 10, 2021, Mr. McCoshum was fishing from the shore of the Columbia River, when his pole was dragged into the water by a passing boat operated by Daniel Peshkov. RP 160-161, 233. Once Mr. Peshkov docked, Mr. McCoshum approached him and, in a "calm" manner, informed him the fishing pole was a gift from his father and he wanted the pole returned or $600 in compensation. RP 164-165.

Mr. Peshkov challenged Mr. McCoshum that he could not prove the fishing pole was worth $600 and continued loading his boat onto his truck. RP 165. As he began to drive away, Mr. McCoshum pulled his truck forward "almost blocking off" the front tire of Mr. Peshkov's truck. RP 165.

Mr. McCoshum spoke to Mr. Peshkov, but he could not hear him. RP 166. So, Mr. Peshkov got out of his truck and walked to the driver's side of Mr. McCoshum's truck. RP 166. Mr. Peshkov testified that Mr. McCoshum pointed a pistol at him and said something to the effect of "I want to shoot you, but you're lucky I'm sane right now." RP 166-167. Mr. Peshkov described the pistol as one seen in country movies. RP 167.

Mr. McCoshum then requested his contact information. Mr. Peshkov provided his name and telephone number. Mr. McCoshum wrote down this information on a dollar bill and drove away. RP 234. Mr. Peshkov phoned the police who contacted Mr. McCoshum at a gas station. RP 190.

After arresting Mr. McCoshum, law enforcement questioned him. Mr. McCoshum told officers he did not assault anyone, did not point a gun at anyone, and the pistol was unloaded. RP 198. Mr. McCoshum also told officers he was trying to retrieve his fishing pole or compensation for it. RP 194. Officer Hogg described the pistol as the type found in a civil war reenactment or movie. RP 206-207.

Given these events, the Government charged Mr. McCoshum with second degree assault (Count 1) and first degree unlawful possession of a firearm (Count 2). Exhibit No. 2. As to Count 1, the Government further alleged he was armed with a firearm in the commission of the offense. *Id.*

After initial defense counsel withdrew, the superior court appointed Morse, Busby, Andrews, and Terry LLP to represent Mr. McCoshum. Exhibit No. 3. That firm then assigned their employee, David Commisa (WSBA No. 51645), as attorney of record. *Id.* After numerous continuances, jury trial was scheduled to commence on October 6, 2022.

On that day, the Parties appeared before the Honorable Derek Vanderwood, Clark County Superior Court Judge, to address preliminary matters. Judge Vanderwood specifically sought to address the Government's reference to and admission of Mr. McCoshum's three prior convictions: two second degree robbery convictions and one attempted kidnapping conviction. RP 15-17.

Mr. Commisa explicitly stated he had no objection to the Government discussing the specifics of Mr. McCoshum's three prior convictions to prove he was prohibited from possessing a firearm. RP 16-17. During this discussion, Judge Vanderwood twice signaled that Mr. Commisa should reconsider his failure to object, but the Government assisted him by explaining it was a "tactical decision." RP 17.

Mr. Commisa also brought a motion *in limine* to exclude the antique pistol because the Government had not proven it could be fired. RP 21-22. Mr. Commisa explained his argument:

> MR. COMMISA: We would just move to, you know, reaffirm our motion to exclude the firearm as it hasn't been proven that it is in fact a firearm and can fire. With the admission of such evidence, it's just highly prejudicial and outweighs any probative value.

Mr. Commisa was unable to provide or cite to any legal authority to support his argument and the motion was denied. RP 22, 63-64.

On October 10, 2022, the Parties appeared to finalize preliminary matters, conduct the CrR 3.5 hearing, select the jury, and begin taking testimony. The Government offered the judgments from the three prior convictions as "substantive evidence of guilt." RP 59-62. Judge Vanderwood again signaled to Mr. Commisa he should object, but he did not, and the exhibits were admitted. *Id.*, Exhibit Nos. 4, 5, and 6.[3]

In reviewing the judgments evidencing the three prior convictions, the Government informed Judge Vanderwood they contained additional information concerning criminal history at the end of each document. RP 59. The court ordered that no indication

[3] These were marked as trial exhibits 5, 6, and 7.

of other criminal history was allowed to be admitted through the judgments. RP 60.

The Government opened its case-in-chief by calling Mr. Peshkov to testify about his confrontation with Mr. McCoshum. During its examination, the government intentionally elicited testimony that Mr. McCoshum phoned Mr. Peshkov after the two had parted ways. RP 175-176. This testimony was elicited to argue Mr. McCoshum's actions caused Mr. Peshkov fear. RP 281.

Mr. McCoshum testified at trial and, consistent with what he told officers, denied pointing the antique pistol. RP 234. He testified he confronted Mr. Peshkov to retrieve his fishing pole because he observed him drag the pole into his boat. *Id.* He also denied contacting Mr. Peshkov after they parted ways. *Id.*

The Government also called Officer Yong during its case-in-chief. Despite being an available witness, neither the Government nor Mr. Commisa asked Officer Yong about Mr. McCoshum's friend, Jessy Ashford, who was present for the snatching of the fishing pole and the confrontation. Officer Yong identified Mr. Ashford as an involved person in her report. Exhibit No. 7.

Officer Yong's report was provided to Mr. Commisa through discovery along with Vancouver Police Department Officer Riedel's report. Exhibit No. 8.[4] In his report, Officer Riedel explains he interviewed Mr. Ashford who told Officer Riedel: (1) he saw Mr. Peshkov pull the fishing pole into his boat; (2) he sat in the truck with Mr. McCoshum and did not see a

[4] Please see the Declaration of Counsel. Exhibit No. 9. Officer Riedel's report was provided through discovery and obtained through public records request.

firearm; and (3) he phoned Mr. Peshkov and left the voicemails. Officer Riedel photographed Mr. Ashford's phone log to confirm he, not Mr. McCoshum, called Mr. Peshkov after they parted ways. Exhibit No. 10.

Mr. McCoshum explains in his declaration, Exhibit No. 11, he implored Mr. Commisa to interview Mr. Ashford, but he did not. Mr. Commisa also did not question Mr. McCoshum about Mr. Ashford during his examination. It appears Mr. Commisa did not interview any witnesses prior to trial.

Petitioner's Counsel submitted a public records request to the Vancouver Police Department who provided a trace report on the antique pistol from the Bureau of Alcohol, Tobacco, Firearms, and Explosives National Tracing Center. Exhibit No. 12. The ATF had no records for this antique pistol because it was not a firearm under 18 U.S.C. § 921. This ATF report was

not included in the Government's discovery to the defense.[5]

After brief deliberations, on October 11, 2022, the jury returned guilty verdicts for both counts and rendered a special verdict finding Mr. McCoshum was armed with a firearm at the time he committed second degree assault.

IX. EFFECTIVE ASSISTANCE OF COUNSEL

Article I, Section 22 of the State Constitution and the Sixth Amendment to the U.S. Constitution guarantee defendants the right to the effective assistance of counsel in criminal proceedings. *Strickland v. Washington*, 466 U.S. 668, 685-686, 104 S.Ct. 205, 280 L.Ed.2d 674 (1987), *State v. Bertrand*, 3 Wn.3d 116, 128, 546 P.3d 1029 (2024). This guarantee

[5] Exhibit No. 9.

extends to appeals. *In re Netherton*, 177 Wn.2d 798, 801, 306 P.3d 918 (2013).

Ineffective assistance of counsel is established when: (1) an attorney's performance was deficient and (2) the deficient performance prejudiced the accused. *Bertrand*, 3 Wn.3d at 128. Performance is deficient if it falls below professional standards and is unreasonable. *Id.*

Prejudice is established when, but for the deficient performance, there is a reasonable probability the outcome may have been different. *Id.* at 129. This standard is less than a preponderance of the evidence. *Id.* Satisfying the *Strickland* test justifies relief through this Petition. *In re Crace*, 174 Wn.2d 835, 848, 280 P.3d 1102 (2012).

X. ISSUES AND ARGUMENT FOR RELIEF

A. *The Government failed to disclose a federal law enforcement report evidencing the antique pistol Mr. McCoshum possessed was not a firearm under federal law, which was favorable as corroborating his belief he did not possess a firearm-in-fact.*

Article I, Section 3 of the Washington State Constitution and the Fourteenth Amendment to the U.S. Constitution guaranteed Mr. McCoshum he would not be deprived of liberty without due process of law. This protection imposed a duty on the government to preserve and disclose evidence favorable to his defense. *Brady v. Maryland*, 373 U.S. 83, 87, 83 S.Ct. 1194, 10 L.Ed.2d 215 (1963), *In re Mulamba*, 199 Wn.2d 488, 498-499, 508 P.3d 645 (2022). This requirement applied equally to the police department and prosecution office. *Kyles v. Whitley*, 514 U.S. 419, 437, 115 S.Ct. 1555, 131 L.Ed.2d 490 (1995).

To establish a *Brady* violation, Mr. McCoshum must show: (1) the government, willfully or inadvertently, withheld evidence; (2) the withheld evidence was favorable, either as exculpatory or impeaching; and (3) he was prejudiced. *Mulamba*, 199 Wn.2d at 498.

1. The Government withheld the ATF report from discovery.

After seizing the antique pistol from Mr. McCoshum's truck, the Vancouver Police Department provided its serial number and description to the ATF to trace records associated with the antique pistol. Exhibit No. 12. On July 15, 2021, the ATF reported back that no trace records were found because the antique firearm did not meet the definition of a firearm under 18 U.S.C. § 921.

The Petitioner's Counsel filed a notice of appearance and represented Mr. McCoshum at the resentencing. The Government provided trial discovery. The ATF report was not included in that discovery. The ATF report was disclosed through a public records request. Exhibit No. 9.

2. The Government was required to prove Mr. McCoshum knew he illegally possessed a firearm-in-fact.

To convict Mr. McCoshum of violating RCW 9.41.040(1), the government had to prove the essential element of "guilty knowledge." *State v. Anderson*, 141 Wn.2d 357, 366, 5 P.3d 1247 (2000). RCW 9A.04.010(1)(b)(i), (ii) provides that a person acts with knowledge or knowingly when:

- He…is aware of a fact, facts, or circumstances or result described by a statute defining an offense or

- He…has information which would lead a reasonable person in the same situation to believe that facts exist which facts are described by a statute defining an offense.

In *Anderson*, the State Supreme Court rejected the proposition that unlawful possession of a firearm is strict liability crime and concluded the government must prove culpable knowledge to secure a conviction. 141 Wn.2d at 366-367, *accord State v. Williams*, 158 Wn.2d 904, 148 P.3d 993 (2006) (unlawful possession of a double-barreled shotgun required prosecution to prove accused knew the firearm's characteristics made possession illegal). Accordingly, the Government had to prove Mr. McCoshum knew he unlawfully possessed a *firearm*.

3. Failing to provide the ATF report prejudiced Mr. McCoshum by denying him a meaningful opportunity to challenge the allegation.

The ATF report evidenced that the antique pistol did not meet the definition of a firearm under federal law.


THE WEAPON DESCRIBED IN THIS REPORT IS NOT A FIREARM AS DEFINED BY FEDERAL LAW, 18USC921(A)(3) AND IS OUTSIDE OF THE ATF REGULATIONS REGARDING RECORDKEEPING AND LICENSING. (UNFINISHED

Exhibit No. 12. This evidence corroborated Mr. McCoshum's subjective belief, based on his own internet research, Exhibit No. 11, that the antique pistol was not a "firearm" under the law. Consequently, the ATF Report was exculpatory. It negated the essential element of knowledge since Mr. McCoshum was unaware of a fact that made his possession illegal. *Anderson* at 366-467.

Since the ATF report was exculpatory, it was favorable to Mr. McCoshum. *Mulamba* at 498-499. This favorable evidence was also material because, had it been presented to the jurors, it would have corroborated Mr. McCoshum's subjective knowledge.

This would have caused at least one jury's assessment of the case to change. *Id.* The withholding of the ATF actually and substantially prejudiced Mr. McCoshum entitling him to relief. *Mulamba* at 503, *Crace* at 848.

B. *Trial counsel's failure to investigate and argue the pertinent defense of the lawful use of force and challenge the knowledge element of unlawful possession of a firearm was ineffective assistance that denied Mr. McCoshum a fair trial.*

To provide effective assistance, trial counsel is expected to conduct necessary legal research and apply relevant statutes. *In re Yung-Chen Tsai*, 183 Wn.2d 91, 102, 351 P.3d 138 (2015). Accordingly, Mr. Commisa was expected to investigate and present defenses available to Mr. McCoshum. *In re Hubert*, 138 Wn. App. 924, 158 P.3d 1282 (2007). Although choosing a particular defense is typically a tactical decision, proceeding to trial without investigating available legal

defenses cannot be excused as strategically reasonable. *Hubert* at 930-931.

1. Trial counsel was on notice that Mr. McCoshum consistently claimed he confronted Mr. Peshkov to retrieve his fishing pole.

Mr. McCoshum was accused of committing second degree assault violative of RCW 9A.36.021(1)(c). To convict Mr. McCoshum of that crime, the government had to prove he used unlawful force. *State v. Acosta*, 101 Wn.2d 612, 617, 683 P.2d 1069 (1984). If there was "some evidence" of lawful force, the government assumed the burden of proving unlawful force beyond a reasonable doubt. *Id.* at 619.

Through the pretrial discovery and Mr. McCoshum's account, Mr. Commisa was on notice he confronted Mr. Peshkov because Mr. McCoshum: (1) saw his boat snatch the fishing pole: (2) observed Mr. Peshkov pull the fishing pole into his boat: (3) followed Mr. Peshkov as he directed his boat to the launch; and (4) confronted him as he attempted to leave the immediate area with the fishing pole.[6]

This information indicated that Mr. McCoshum could raise "some evidence" he used lawful force. Specifically, RCW 9A.16.020(3) provided legal authority for Mr. McCoshum to use reasonable force to prevent the ongoing malicious inference with his personal property that remained in his presence.[7]

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[6] Mr. Ashford likely would have corroborated this if Mr. Commisa had called him as a witness. *See infra*.

[7] Whether Mr. McCoshum used more force than necessary reasonable force was different question for the jury to determine. RCW 9A.16.020(3).

2. Trial counsel was on notice that Mr. McCoshum reasonably believed he could legally possess the antique pistol because it was not considered a firearm under 18 U.S.C. § 921.

As explained in Issue A, and incorporated here, to convict Mr. McCoshum of first degree unlawful possession of a firearm, the government had to prove "guilty knowledge." *Anderson* at 366. Mr. McCoshum told Mr. Commisa he legally purchased the antique pistol and did so after learning from internet research the antique pistol was not a firearm under federal law. Exhibit Nos. 11 and 12.

Had Mr. Commisa conducted cursory legal research, as he was required to do, *Yung-Chen Tsai* at 102, he would have learned that Mr. McCoshum belief was accurate under federal law. Thus, although not immunizing Mr. McCoshum from state prosecution, it

was evidence negating the essential element: he knew he was unlawfully possessing a firearm.[8]

3. By failing to present the viable defense of lawful force and failing to present evidence Mr. McCoshum believed he was in lawful possession of the antique pistol, trial counsel denied Mr. McCoshum the right to a present a defense and a fair trial.

Instead of receiving effective assistance by a prepared attorney, Mr. McCoshum was compelled to be represented by someone who appeared unfamiliar with the applicable law, rules of evidence, and trial advocacy.

Concerning the failure to present some evidence of the lawful use of force and shifting the burden to the government to prove Mr. McCoshum was acting unlawfully when he sought to prevent the interference

[8] Mr. Commisa also had a colorable argument to seek and extend the defense of mistake of law. *See State v. Minor*, 162 Wn.2d 796, 174 P.3d 1162 (2008).

with his property, Mr. Commisa argued to the jury that the Government presented no evidence other than Mr. Peshkov's testimony that Mr. McCoshum pointed a gun at him. RP 303.

As the audience, when hearing this argument, the jury would have expected Mr. Commisa to have thoroughly cross-examined Mr. Peshkov to demonstrate a motive to lie, embellished circumstances, or the inability to perceive events given his emotional state. However, Mr. Commisa conducted no meaningful cross-examination and only asked Mr. Peshkov two questions.

The first question was whether Mr. Peshkov was accompanied by his friend. This question was of unknown relevance because there was no follow-up or relevant argument. The second question, which was properly objected to, was whether Mr. Peshkov had

reimbursed Mr. McCoshum for his fishing pole. This question was likely perceived as flippant by the jury. Thus, exacerbating the prejudice to Mr. McCoshum.

Mr. Commisa's decision to argue to the jury the alleged victim was an unreliable witness without asking one question to show he was unreliable was unreasonable given there was more than "some evidence" of the defense of defense of property. Indeed, even just asking for the instruction would have increased the Government's burden. Mr. Commisa's unreasonable performance actually and substantially prejudiced Mr. McCoshum.

Mr. McCoshum was also actually and substantially prejudiced by Mr. Commisa's failure to elicit testimony or present other evidence negating the essential element of knowledge, which the government

had to prove, beyond a reasonable doubt, to convict him of unlawful possession of a firearm.

Instead, Mr. Commisa chose to argue the Government failed to prove the antique pistol was a "working firearm" because the officer didn't test fire it. RP 303. This was an extension of his unsuccessful motion *in limine* where he sought to exclude the antique pistol pursuant to ER 403. RP 22. These arguments demonstrate Mr. Commisa failed to reasonably familiarize himself with the applicable law.

A firearm is a device that may fire a projectile with the use of an explosive such as gunpowder. RCW 9.41.010(20). Thus, to be convicted of unlawful possession of a firearm, the Government only needed to prove that, with minimal effort, the antique pistol could be assembled to be operational. RCW 9.41.040(1),

State v. Padilla, 95 Wn. App. 531, 535, 978 P.2d 1113 (1999).

During trial, Officer Hogg, presented detailed testimony explaining the functions of the antique pistol's parts and how all the accoutrements necessary to render it operational were present in the backpack. RP 210-216. He also testified that black powder and gunpowder are the same thing. RP 207.

Again, *in lieu* of answering the charge with a viable defense – Mr. McCoshum believed his possession of the antique pistol was not a firearm based on his knowledge of federal law – Mr. Commisa chose an unreasonable argument that was inconsistent with the law and the jury instructions.

C. *Trial counsel's failure to interview or call witnesses possessing favorable evidence was prejudicially deficient performance violating Mr. McCoshum's right to present a defense and denying him a fair trial.*

To provide constitutionally effective assistance, a trial attorney must conduct pretrial investigation. *State v. Jones*, 138 Wn.2d 327, 339, 352 P.3d 776 (2015). This includes interviewing witnesses. *Id.* The failure to interview a specific witness can constitute constitutionally deficient performance depending on the reasons for failing to do so. *Id.* at 339-340.

In *Jones*, the appellant was convicted of second degree assault after witness testimony evidenced he was the aggressor in a street fight. Following trial, defense counsel withdrew with concerns he was ineffective for failing to interview a witness a detective testified to interviewing during trial. *Id.* at 332.

New counsel was appointed and identified a second witness, identified in the discovery, who trial counsel also failed to interview. During the defense interview of the second witness, he reported that the

alleged victim attacked Mr. Jones. This evidence refuted the government's claim that Mr. Jones was the aggressor. *Id.* at 332-333. The new attorney brought a motion for a new trial, which was denied.

In reversing Mr. Jones's conviction, the State Supreme Court reiterated that failing to interview a witness can constitute deficient performance. *Id.* at 339-340. The court observed an attorney's decision to not interview a witness can be tactical, but the failure to interview must be based on reason. *Id.* at 339-340. The failure to interview and call the second witness or other identifiable witnesses prejudiced the appellant by preventing him from presenting favorable evidence. *Id.* at 344.

Presently, trial counsel was put on notice that Mr. Ashford possessed evidence favorable to Mr. McCoshum. This notice came from both the pretrial discovery and Mr. McCoshum himself. Mr. Ashford's testimony would have supported the claim of defense of property, refuted Mr. Peshkov's testimony that Mr. McCoshum pointed the antique pistol at him, and rebutted the testimony that Mr. McCoshum phoned Mr. Peshkov after they parted ways.

Mr. Commisa should have also interviewed and called Officer Riedel as a witness. Officer Riedel would have testified that Mr. Ashford admitted to phoning Mr. Peshkov. Similarly, Mr. Commisa should have interviewed and called Mr. Peshkov's friend, Artem Pohrybniak, who told law enforcement he did not see Mr. McCoshum point a firearm at Mr. Peshkov.

There was no strategic reason for not interviewing these witnesses or calling them to testify. Especially, Mr. Ashford who possessed evidence that both refuted the government's characterization of events and corroborated Mr. McCoshum's account. This failure actually and substantially prejudiced Mr. McCoshum and denied him a fair trial. *Jones* at 339-340. He is entitled to retrial with prepared counsel. *Crace* at 848.

D. *Trial counsel's failure to request redaction of the three judgments admitted to prove Mr. McCoshum was disqualified from possessing a firearm was prejudicially deficient performance*.

The Government introduced three criminal judgments as substantive evidence to prove Mr. McCoshum was previously convicted of serious offenses. RP 59, Exhibit Nos. 4, 5, and 6. Judge Vanderwood ordered that the judgments could not any

indication of other criminal history. RP 59-60. Despite this order, these judgments do include indications of other criminal history. Specifically,

2.2 CRIMINAL HISTORY (RCW 9.94A.525):

CRIME	DATE OF SENTENCE	SENTENCING COURT (County & State)	DATE OF CRIME	A or J Adult, Juv.	TYPE OF CRIME
See Attached Criminal History					

☒ Additional criminal history is attached in Appendix 2.2.

Exhibit No. 4, pg. 2.

2.2 CRIMINAL HISTORY (RCW 9.94A.525):

CRIME	DATE OF SENTENCE	SENTENCING COURT (County & State)	DATE OF CRIME	A or J Adult, Juv.	TYPE OF CRIME
See Attached Criminal History					

☒ Additional criminal history is attached in Appendix 2.2.

Exhibit No. 5, pg. 2.

COUNTS DISPOSED WITH NO CONVICTION

Count # 3, Interfering w/ Peace/Parole and Probation Officer is Dismissed.

Count # 4, Harassment is Dismissed.

Count # 5, Harassment is Dismissed.

Exhibit No. 6, pg. 3.

In addition to the two Washington criminal judgments evidencing criminal history beyond the two convictions and the Oregon judgment evidencing that one count of obstruction and two counts of harassment

were dismissed as part of the guilty plea, the Washington judgments also evidenced Mr. McCoshum was disqualified from possessing a firearm until his right to do so was restored:

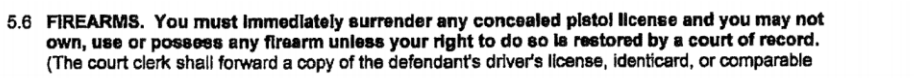

5.6 **FIREARMS. You must immediately surrender any concealed pistol license and you may not own, use or possess any firearm unless your right to do so is restored by a court of record.** (The court clerk shall forward a copy of the defendant's driver's license, identicard, or comparable

Exhibit Nos. 4 and 5, pg. 10. These provisions should have been redacted and it was Mr. Commisa's duty to protect Mr. McCoshum by preventing this prejudicial evidence from being presented to the jury.

To begin, the trial court ordered no indication of other criminal history was not to be provided to the jury beyond the fact of the convictions themselves. The Government stated it would remove the additional pages found at the end of the judgments, but Mr. Commisa had a duty to ensure that even with removing those pages, there was no indication of other

criminal history. This was to fulfill the court's order, which was intended to protect Mr. McCoshum.

Thus, Judge Vanderwood signaled to Mr. Commisa to object to the admission of these exhibits, which he did not. Then, Judge Vanderwood ordered the three exhibits to be sanitized to remove any indication of other criminal history, Mr. Commisa failed to request that references to additional criminal history and dismissed charges be redacted. This omission was unreasonable. *See State v. Crow*, 8 Wn. App.2d 480, 508-509, 438 P.3d 541 (2019).

Additionally, by failing to request redact the two judicial provisions explaining it was illegal for Mr. McCoshum to own, use, or possess a firearm until his right to do so was restored, Mr. Commisa allowed the jury to be presented with judicial orders that encroached on an ultimate issue. The unredacted

provisions told the jurors, rather than allowing them to find, Mr. McCoshum was guilty of unlawful possession of a firearm. Mr. Commisa's failure to request redaction of the orders, which Judge Vanderwood clearly would have granted, exacerbated the prejudicial effect of not objecting to the specific judgments, which Judge Vanderwood also would have granted. This actually and substantially prejudiced Mr. McCoshum.

E. *The Government committed misconduct by eliciting testimony it knew or should have known was false.*

Article I, Sections 3 and 22 of the Washington State Constitution and the Sixth and Fourteenth Amendments to the U.S. Constitution guaranteed Mr. McCoshum a fair trial. To fulfill this promise, the government was prohibited from engaging in misconduct and was required to comply with the greater ethical duties placed upon prosecutors. *In re*

Glassman, 175 Wn.2d 696, 703-704, 286 P.3d 673 (2012).

The government's duty to avoid misconduct included not presenting false evidence to the jury. *State v. Finnegan*, 6 Wn. App. 612, 616, 495 P.2d 674 (1972). For Mr. McCoshum to succeed on a claim the government presented false evidence, he must show: (1) the testimony was actually false; (2) the government knew or should have known the testimony was false; and (3) the false testimony was material. *See United States v. Zuno-Acre*, 339 F.3d 886, 889 (9th Cir. 2003).

1. <u>The Government elicited false testimony from Mr. Peshkov that Mr. McCoshum phoned him</u>.

During the government's direct examination of Mr. Peshkov, while questioning him about his fear and apprehension, the following occurred:

Q. (By Ms. Arnaud) After -- after Mr. McCoshum had driven away, did you receive a phone call?
A. Yes.
Q. And what happened with that phone call?
A. He called me. I couldn't really hear him, so then I disconnected the phone. And then I turned -- I mean, I turned off the call. And then he called me back again, I didn't pick up the phone, and he left a voice mail.
Q. And do you recall what he said in the voice mail?
A. I could barely hear anything out of the voice mail. I don't know if it was -- it sounded like the phone was, like, fluttered or something because I -- I couldn't almost pronounce a single word.

RP 175-176.

It is clear from Officer Riedel's report that Mr. Ashford phoned Mr. Peshkov. Exhibit No. 8. This was corroborated by the photograph of Mr. Ashford's call log. Exhibit No. 10. Mr. Peshkov's testimony that Mr. McCoshum phoned him was not true.

2. The Government knew or should have known that Mr. McCoshum did not call Mr. Peshkov.

Through discovery, the Government disclosed Officer Riedel's report and the photographs he took of Mr. Ashford's phone log. This evidence demonstrated Mr. Ashford phoned Mr. Peshkov. The Government knew or should have known Mr. Peshkov's testimony about the phone call was false. *See Kyles*, 514 U.S. at 437 (prosecution is in a position to know what law enforcement discloses).

3. The Government committed misconduct by eliciting the false testimony, which was material as portraying Mr. McCoshum as aggressive and bolstering Mr. Peshkov's fear.

During closing argument, the Government referenced Mr. McCoshum phoning Mr. Peshkov:

could contact him because he was trying to deescalate the situation because he was trying to get out of there because he was afraid.

Eventually the defendant is satisfied that he has contact information and he has a way to get a hold of Daniel, so he leaves. But he calls him on his phone, and he leaves a voice mail. He leaves multiple voice mails in fact.

RP 281.

The testimony and references to Mr. McCoshum phoning Mr. Peshkov enabled the Government to portray Mr. McCoshum as aggressive, unpredictable, and as a possible threat who would pursue Mr. Peshkov.

Also, given that Mr. McCoshum testified he did not call Mr. Peshkov, eliciting the conflicting testimony discredited Mr. McCoshum in the eyes of the jury. By discrediting Mr. McCoshum, the Government invited the jury to discount the remainder of his brief testimony, which now appears to have been accurate and supported by other evidence. The Government's irreparable damaged Mr. McCoshum's right to a fair trial.

XI. CONCLUSION

The Government characterized Mr. McCoshum as a violent and aggressive person who pursued Mr. Peshkov over a mere fishing pole while illegally possessing a gun. This depiction was unfair and an inaccurate representation of the circumstances surrounding both allegations.

Prior to the incident, Mr. McCoshum was aware he was unable to possess a firearm and conducted research to find out if he was permitted to purchase and own an antique pistol. He learned, under 18 U.S.C. § 921, an antique pistol was not considered a firearm. He believed he was legally authorized to possess the antique pistol.

In terms of the confrontation with Mr. Peshkov, Mr. McCoshum was upset that the expensive fishing pole gifted to him by his departed father was dragged

into the water. He was further upset because he and Mr. Ashford observed Mr. Peshkov put the fishing pole into his boat. Mr. McCoshum was not trying to intimidate anyone. He was trying to prevent the malicious interference with his property from becoming permanent.

Had Mr. McCoshum been appointed prepared and experienced counsel, the outcome likely would have been different. Unfortunately, he was represented by an attorney who failed to perform in accordance with professional standards. Mr. Commisa aggravated the harm from his deficient performance by ignoring Judge Vanderwood's attempts to guide him to correct his errors.

This Court now has the opportunity to remedy the denial of Mr. McCoshum's right to a fair trial by granting this Petition.

XII. RELIEF REQUESTED

Based on the aforementioned arguments and authorities, Mr. McCoshum respectfully requests that this Court:

(1) Conclude he received ineffective assistance of counsel and remand for retrial;

(2) Conclude the Government withheld favorable evidence and the withholding of that evidence prejudiced Mr. McCoshum's ability to defend; and

(3) Conclude the government engaged in uncurable misconduct and remand for retrial.

XIII. REQUEST FOR WAIVER OF FILING FEE

Mr. McCoshum is indigent and respectfully requests that this Court waive the filing fee. RAP 16.8(a), RCW 4.24.430. His Financial Certification is affixed as Exhibit No. 13.

This Petition was prepared using word processing software, contains 6,275 words, and complies with RAP 18.17.

DATED this the 28th day of February, 2025.

Respectfully submitted,

SEAN DEVLIN (WSBA 34554)
Attorney for Petitioner

EXHIBITS

EXHIBIT

1

16 AB DOC

S3

FILED
OCT 03 2024 2:31
Scott G. Weber, Clerk, Clark Co

Superior Court of Washington
County of Clark

State of Washington, Plaintiff, vs. Nicholas Jonathon A Mccoshum, Defendant. SID: WA19845627 If no SID, use DOB: 06/23/1987	**No. 21-1-01329-06** **Felony Judgment and Sentence -- Prison (FJS)** ☒ **Clerk's Action Required, para 2.1, 4.1, 4.3, 5.2, 5.3, 5.5 and 5.7** ☐ **Defendant Used Motor Vehicle** ☐ **Juvenile Decline** ☐ **Mandatory** ☐ **Discretionary**

I. Hearing

1.1 The court conducted a sentencing hearing this date; the defendant, the defendant's lawyer, and the (deputy) prosecuting attorney were present.

II. Findings

2.1 Current Offenses: The defendant is guilty of the following offenses, based upon
[ ] guilty plea [X] jury-verdict 10/11/2022 [ ] bench trial :

Count	*Crime*	*RCW (w/subsection)*	*Class*	*Date of Crime*
01	ASSAULT 2 - DEADLY WEAPON	9A.36.021(1)(c) [DW]	B	07/10/2021
02	UNLAWFUL POSSESSION OF A FIREARM IN THE FIRST DEGREE	9.41.040(1)(a) [pre 2020]	B	07/10/2021

☐ Additional current offenses are attached in Appendix 2.1a.
The jury returned a special verdict or the court made a special finding with regard to the following:
☐ For crime(s) charged in Count(s) _____ **domestic violence - intimate partner** was pled and proved.
☐ For crime(s) charged in Count(s)_____ **domestic violence – family or household member** was pled and proved.

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AMS

☒ The defendant used a **firearm** in the commission of the offense in Count 1. RCW 9.94A.825, 9.94A.533.

☐ The defendant used a **deadly weapon other than a firearm** in committing the offense in Count _____. RCW 9.94A.825, 9.94A.533.

☐ Count _____, is aggravated murder in the first degree committed while the defendant was ☐ under 16 years of age ☐ 16 or 17 years of age when the offense was committed.

☐ Count _____, was committed while the defendant was under 18 years of age and the time of confinement is over 20 years.

☐ Count _____, **Violation of the Uniform Controlled Substances Act (VUCSA)**, RCW 69.50.401 and RCW 69.50.435, took place in a school, school bus, within 1000 feet of the perimeter of a school grounds or within 1000 feet of a school bus route stop designated by the school district; or in a public park, public transit vehicle, or public transit stop shelter; or in, or within 1000 feet of the perimeter of a civic center designated as a drug-free zone by a local government authority, or in a public housing project designated by a local governing authority as a drug-free zone.

☐ In count _____ the defendant committed a robbery of a pharmacy as defined in RCW 18.64.011(21), RCW 9.94A.____.

☐ The defendant committed a crime involving the manufacture of methamphetamine, including its salts, isomers, and salts of isomers, **when a juvenile was present in or upon the premises of manufacture** in Count _____. RCW 9.94A.605, RCW 69.50.401, RCW 69.50.440.

☐ Count _____ is a **criminal street gang**-related felony offense in which the defendant compensated, threatened, or solicited a **minor** in order to involve that minor in the commission of the offense. RCW 9.94A.833.

☐ Count _____ is the crime of **unlawful possession of a firearm** and the defendant was a **criminal street gang** member or associate when the defendant committed the crime. RCW 9.94A.702, 9.94A.829.

☐ The defendant committed ☐ **vehicular homicide** ☐ **vehicular assault** proximately caused by driving a vehicle while under the influence of intoxicating liquor or drug or by operating a vehicle in a reckless manner. The offense is, therefore, deemed a violent offense. RCW 9.94A.030.

GY ☐ In Count _____, the defendant had (number of) _____ **passenger(s) under the age of 16** in the vehicle. RCW 9.94A.533.

☐ Count _____ involves **attempting to elude** a police vehicle and during the commission of the crime the defendant endangered one or more persons other than the defendant or the pursuing law enforcement officer. RCW 9.94A.834.

☐ In Count _____ the defendant has been convicted of **assaulting a law enforcement officer** or other employee of a law enforcement agency who was performing his or her official duties at the time of the assault, as provided under RCW 9A.36.031, and the defendant intentionally committed the assault with what appeared to be a firearm. RCW 9.94A.831, 9.94A.533.

☐ Count _____ is a felony in the commission of which the defendant used a **motor vehicle** and

- ☐ the felony offense occurred before January 1, 2022; or
- ☐ the felony offense occurred after, or on, January 1, 2022 and the motor vehicle was used in a manner that

endangered persons or property. RCW 46.20.285

☐ The defendant has a **substance use disorder** that has contributed to the offense(s). RCW 9.94A.607.

☐ Reasonable grounds exist to believe the defendant is a mentally ill person as defined in RCW 71.24.025, and that this condition is likely to have influenced the offense. RCW 9.94B.080

☐ In Count _____, assault in the 1st degree (RCW 9A.36.011) or assault of a child in the 1st degree (RCW 9A.36.120), the offender used force or means likely to result in death or intended to kill the victim and shall be subject to a mandatory minimum term of 5 years (RCW 9.94A.540).

☐ Counts _____ encompass the same criminal conduct and count as one crime in determining the offender score. RCW 9.94A.589.

☐ **Other current convictions listed under different cause numbers used in calculating the offender score are** (list offense and cause number):

	Crime	*Cause Number*	*Court (county & state)*	*DV* Yes*
1.				

*DV: Domestic Violence was pled and proved

☐ Additional current convictions listed under different cause numbers used in calculating the offender score are attached in Appendix 2.1b.

2.2 Criminal History (RCW 9.94A.525):

	Crime	*Date of Crime*	*Date of Sentence*	*Sentencing Court (County & State)*	*A or J Adult, Juv.*	*Type of Crime*	*DV* Yes*
1	See attached						

*DV: Domestic Violence was pled and proved

☐ Additional criminal history is attached in Appendix 2.2.

☐ The defendant committed a current offense while on community placement/community custody (adds one point to score). RCW 9.94A.525.

☐ The prior convictions for _____ are one offense for purposes of determining the offender score (RCW 9.94A.525)

☐ The prior convictions for _____ are not counted as points but as enhancements pursuant to RCW 46.61.520.

[X] The defendant has previously had DNA collected in this state pursuant to a previous conviction. RCW 43.43.7541.

2.3 Sentencing Data:

Count No.	*Offender Score*	*Seriousness Level*	*Standard Range (not including enhancements)*	*Plus Enhancements**	*Total Standard Range (including enhancements)*	*Maximum Term*
01	7	IV	43 MONTHS - 57 MONTHS	+36 MONTHS	79 MONTHS - 93 MONTHS	10 Years
02	5	VII	41 MONTHS - 54 MONTHS		41 MONTHS – 54 MONTHS	10 Years

* (F) Firearm, (D) Other deadly weapons, (V) VUCSA in a protected zone, (RPh) Robbery of a pharmacy, (VH) Veh. Hom, see RCW 46.61.520, (JP) Juvenile present, (CSG) criminal street gang involving minor, (AE) endangerment while attempting to elude, (ALF) assault law enforcement with firearm, RCW 9.94A.533(12), (P16) Passenger(s) under age 16.

☐ Additional current offense sentencing data is attached in Appendix 2.3.

For violent offenses, most serious offenses, or armed offenders, recommended **sentencing agreements or plea agreements** are ☐ attached ☐ as follows: _____.

2.4 ☐ Exceptional Sentence. The court finds substantial and compelling reasons that justify an exceptional sentence:

☐ below the standard range for Count(s) _____.

☐ above the standard range for Count(s) _____.

☐ The defendant and state stipulate that justice is best served by imposition of the exceptional sentence above the standard range and the court finds the exceptional sentence furthers and is consistent with the interests of justice and the purposes of the sentencing reform act.

☐ Aggravating factors were ☐ stipulated by the defendant, ☐ found by the court after the defendant waived jury trial, ☐ found by jury, by special interrogatory.
☐ within the standard range for Count(s) _____, but served consecutively to Count(s) _____. Findings of fact and conclusions of law are attached in Appendix 2.4. ☐ Jury's special interrogatory is attached. The Prosecuting Attorney ☐ did ☐ did not recommend a similar sentence.

2.5 Ability to Pay Legal Financial Obligations. The court makes the following specific findings:

☒ The defendant is "indigent" pursuant to RCW 10.101.010(3)(a)-(c) because:

☐ The defendant receives public assistance as defined in RCW 10.101.010(3)(a).

☐ The defendant is involuntarily committed to a public mental health facility.

☒ The defendant receives an annual income, after taxes, of one hundred twenty-five percent or less of the current federally established poverty level.

☐ The defendant is not "indigent" as defined in RCW 10.101.010(3)(a)-(c) and therefore the court has considered the defendant's financial resources, and the nature of the burden that payment of costs will impose in determining the amount and method of payment for costs imposed by this judgment.

☐ The following extraordinary circumstances exist that make restitution inappropriate. (RCW 9.94A.753):

_____.

☐ The defendant has the present means to pay costs of incarceration. RCW 9.94A.760.

☐ (Name of agency)_____'s costs for its emergency response are reasonable. RCW 38.52.430.

2.6 ☒ Felony Firearm Offender Registration. The defendant committed a felony firearm offense as defined in RCW 9.41.010, and:
☒ The court considered the following factors:
☒ the defendant's criminal history.
☒ whether the defendant has previously been found not guilty by reason of insanity of any offense in this state or elsewhere.
☐ evidence of the defendant's propensity for violence that would likely endanger persons.
☐ other:_____.
☒ The court decided the defendant ☒ should ☐ should not register as a felony firearm offender.

☐ The defendant must register as a felony firearm offender because the offense was committed in conjunction with an offense committed against a person under the age of 18, or a serious violent offense or offense involving sexual motivation as defined in RCW 9.94A.030

III. Judgment

3.1 The defendant is ***guilty*** of the Counts and Charges listed in Paragraph 2.1.

3.2 ☐ The court ***dismisses*** Counts in the charging document.

IV. Sentence and Order

It is ordered:

4.1 Confinement and Community Custody. The court sentences the defendant to total confinement and community custody as follows:

(a) ***Confinement and Community Custody.*** A term of total confinement in the custody of the Department of Corrections (DOC) under RCW 9.94A.589 and, if required by RCW 9.94A.701, a term of community custody supervised by DOC.

☐ The defendant was under 18 at the time of the offense and shall be initially placed in the custody of the Department of Children, Youth, and Families (DCYF):

Count No.	*Base Sentence (not including enhancements)*	*Plus Enhancements*	*Total Sentence*	*Community Custody*
Count 01	45months	36months	81 months	18 months
Count 02	45months	0months		

The **"total sentence"** in the above table **contains** 36 months for ☒ firearm ☐ deadly weapon ☐ VUCSA in a protected zone ☐ manufacture of methamphetamine with a juvenile present ☐ impaired driving.

☐ The confinement time on count/s _____ contain/s a mandatory minimum term of _____.

Actual number of months of total confinement ordered is: _____.

The **community custody** term includes ☐ 12 months (for crimes against a person, drug offenses, or offenses involving the unlawful possession of a firearm by a street gang member or associate) ☐ 18 months for Violent Offenses ☐ 36 months for Serious Violent Offenses.

Note: If the combined term of confinement and community custody for any particular count exceeds the count's statutory maximum set forth in Section **2.3**, the court must reduce the community custody term. RCW 9.94A.701.

(b) ***Confinement and Community Custody.*** RCW 10.95.030(2) (Aggravated murder and under age 18.) The court orders the following:

Count _____ minimum term: _____ maximum term: Life

(c) ***Concurrent/Consecutive Confinement and Community Custody***

All counts shall be served concurrently, except for the portion of those counts for which there is an enhancement as set forth above at Section **2.3**, and except for the following counts which shall be served consecutively: _____.

This sentence shall run consecutively with the sentence in the following cause number(s) (see RCW 9.94A.589(3)): _____.

Confinement shall commence immediately unless otherwise set forth here: _____ _____.

Community custody on all counts shall be served concurrently, except for the following counts, which shall be served consecutively: _____
The community custody terms of this sentence shall run consecutively with the community custody term in the following cause number(s) (*see* RCW 9.94A.589(2)(a)):

(d) ***Credit for Time Served***: The defendant shall receive credit for eligible time served prior to sentencing if that confinement was solely under this cause number. RCW 9.94A.505. The jail shall compute time served.

(e) ☐ ***Work Ethic Program.*** RCW 9.94A.690, RCW 72.09.410. The court finds that the defendant is eligible and is likely to qualify for work ethic program. The court recommends that the defendant serve the sentence at a work ethic program. Upon completion of work ethic program, the defendant shall be released on community custody for any remaining time of total confinement, subject to the conditions in Section **4.2.** Violation of the conditions of community custody may result in a return to total confinement for the balance of the defendant's remaining time of confinement.

4.2 Community Custody.

Mandatory Conditions:

While on community custody, the defendant shall:

(1) Inform DOC of court-ordered treatment;
If any court orders mental health or substance use disorder treatment, the defendant must notify DOC and the defendant must release treatment information to DOC for the duration of incarceration and supervision. RCW 9.94A.562.

(2) Comply with any conditions imposed by the DOC under RCW 9.94A.704;

(3) Not reside in a community protection zone (if the defendant was sentenced under RCW 9.94A.507 for an offense listed in RCW 9.94A.507(1)(a), and the victim of the offense was under 18 years of age at the time of the offense);

(4) Not serve in any paid or volunteer capacity where they have control or supervision of minors under the age of 13 (if the offender was sentenced under RCW 9A.36.120).

Waivable Conditions (Check conditions that are **not** waived)

While on community custody, the defendant shall:

☒ Report to and be available for contact with the assigned community corrections officer as directed;

☒ Work at department-approved education, employment, or community restitution, or any combination thereof;

☒ Refrain from possessing or consuming controlled substances, including marijuana, except pursuant to lawfully issued prescriptions/authorizations;

☒ Obtain prior approval of the department for the offender's residence location and living arrangements.

Discretionary Conditions (check conditions that are imposed)

The court orders that, during the period of supervision, the defendant shall:

☒ Remain within, or outside of, a specified geographical boundary, to wit: AS SET BY DOC

☒ Refrain from direct or indirect contact with the victim of the crime or a specified class of individuals, to wit: DANIEL PESHKOV

☒ Participate in crime-related treatment or counseling services, to wit: AS SEY BY DOC

☒ Participate in rehabilitative programs or otherwise perform affirmative conduct reasonably related to the circumstances of the offense, the offender's risk of reoffending, or the safety of the community, to wit AS SET BY DOC.

☒ Refrain from possessing or consuming alcohol;

☐ Comply with the following crime-related prohibitions: AS SET BY DOC.

Special Conditions
As authorized by RCW 9.94A.703(4), the defendant shall:

_____

_____

(A) ***Long-Term Juvenile Sentences.*** RCW 9.94A.730. If the defendant committed the above crime(s) while under age 18 and is sentenced to more than 20 years of confinement:

As long as the defendant's conviction is not for aggravated first degree murder or certain sex crimes, and the defendant has not been convicted of any crime committed after he or she turned 18 or committed a disqualifying serious infraction as defined by DOC in the 12 months before the petition is filed, the defendant may petition the Indeterminate Sentence Review Board (Board) for early release after the defendant has served 20 years.

(i) If the defendant is released early because the petition was granted or by other action of the ISRB, the defendant will be subject to community custody under the supervision of the DOC for a period of time determined by the Board, up to the length of the court-imposed term of incarceration. The defendant will be required to comply with any conditions imposed by the Board.

(ii) If the defendant violates the conditions of community custody, the Board may return the defendant to confinement for up to the remainder of the court-imposed term of incarceration.

4.3 Legal Financial Obligations: The defendant shall pay to the clerk of this court:

JASS CODE			
PCV	$ 500.00	Victim assessment **(mandatory, however waive if Court found defendant to be indigent pursuant to RCW 10.101.010(3)(a)-(c) in section 2.5 above).**	RCW 7.68.035
PDV	$_____	Domestic Violence assessment	RCW 10.99.080
	$_____	Violation of a DV protection order ($15 mandatory fine)	RCW 7.105.450(1)(b)
FRC	$_____	Criminal filing fee, **(mandatory, however waive if Court found defendant to be indigent pursuant to RCW 10.101.010(3)(a)-(c) in section 2.5 above).**	RCW 36.18.020
CRC	$ TO BE SET	Court costs, including RCW 9.94A.760, 9.94A.505, 10.01.160, 10.46.190	
		Witness costs $_____ WFR	
		Sheriff service fees $_____ SFR/SFS/SFW/WRF	
		Jury demand fee $_____ JFR	
		Extradition costs $_____ EXT	
		Other $_____	
PUB	$ _____	Fees for court appointed attorney	RCW 9.94A.760
WFR	$ TO BE SET	Court appointed defense expert and other defense costs	RCW 9.94A.760
FCM/MTH	$_____	☐ Fine RCW 9A.20.021	
FCM/MTH	$_____	☐ VUCSA Fine 69.50.430 ☐ deferred due to indigency	
CDF/LDI/FCD NTF/SAD/SDI		Drug enforcement Fund # ☐ 1015 ☐ 1017 (TF)	RCW 9.94A.760
	$ _____	DUI fines, fees and assessments	
CLF	$_____	Crime lab fee ☐ suspended due to indigency	RCW 43.43.690

FPV $_____ Specialized forest products RCW 76.48.140

$_____ Other fines or costs for:_____

DEF $_____ Emergency response costs ($1000 maximum, $2,500 max. effective Aug. 1,2012.) RCW 38.52.430

RTN/RJN $ TO BE SET Restitution to:
(Name and Address--address may be withheld and provided confidentially to Clerk of the Court's office.)

$_____ ***Total*** RCW 9.94A.760

☐ The above total does not include all restitution or other legal financial obligations, which may be set by later order of the court. An agreed restitution order may be entered. RCW 9.94A.753. A restitution hearing:

☐ shall be set by the prosecutor.
☐ is scheduled for_____(date).

☐ The defendant waives any right to be present at any restitution hearing (sign initials):_____.

☐ ***Restitution*** Schedule attached.

☐ Restitution ordered above shall be paid jointly and severally with:

RJN	**Name** of other defendant	**Cause Number**	Victim's name	Amount-$

☐ The Department of Corrections (DOC) or clerk of the court shall immediately issue a Notice of Payroll Deduction. RCW 9.94A.7602, RCW 9.94A.760.

☐ All payments shall be made in accordance with the policies of the clerk of the court and on a schedule established by DOC or the clerk of the court, commencing immediately, unless the court specifically sets forth the rate here: Not less than per month commencing_____. RCW 9.94A.760.

The defendant shall report to the clerk of the court or as directed by the clerk of the court to provide financial and other information as requested. RCW 9.94A.760.

☐ The court orders the defendant to pay costs of incarceration at the rate of per day, (actual costs not to exceed $100 per day). (*JLR*) RCW 9.94A.760. (This provision does not apply to costs of incarceration collected by DOC under RCW 72.09.111 and 72.09.480.)

The restitution obligations imposed in this judgment shall bear interest from the date of the judgment until payment in full, at the rate applicable to civil judgments. RCW 10.82.090. No interest shall accrue on non-restitution obligations imposed in this judgment. An award of costs on appeal against the defendant may be added to the total legal financial obligations. RCW 10.73.160.

4.4 DNA Testing. The defendant shall have a biological sample collected for purposes of DNA identification analysis and the defendant shall fully cooperate in the testing. If the defendant has already had a biological sample collected, the collecting agency may choose not to collect another sample. RCW 43.43.754.

[X] The facility where the defendant serves the term of confinement shall be responsible for obtaining the sample as part of the defendant's intake process or as soon as practicable.

☐ If further confinement is not ordered,

☐ The defendant shall report to _____ (law enforcement agency) by _____ (date/time) to provide a biological sample.

☐ The defendant shall immediately provide a biological sample to the local police department or sheriff's office before leaving the courtroom.

Failure to provide a biological sample is a gross misdemeanor.

4.5 No Contact:

☒ The defendant shall not have contact with Daniel Sergey Peshkov including, but not limited to, personal, verbal, telephonic, written or contact through a third party until 10/28/2032 (which does not exceed the maximum statutory sentence).

☒ The defendant is excluded or prohibited from coming within:

☐ 500 feet ☐ 880 feet ☒ 1000 feet of:

☒ Daniel Sergey Peshkov (name of protected person(s))'s

☒ home/ residence ☒ work place ☒ school

☒ (other location(s)) person

☐ other location _____,

until 10/28/2032 (which does not exceed the maximum statutory sentence).

☒ A separate Domestic Violence No-Contact Order, Antiharassment No-Contact Order, or Sexual Assault Protection Order is filed concurrent with the original 10/28/2022 Judgment and Sentence and remains in effect.

4.6 Other:

_____

_____

_____

_____

4.7 Off-Limits Order. (Known drug trafficker). RCW 10.66.020. The following areas are off limits to the defendant while under the supervision of the county jail or Department of Corrections: _____

_____.

4.8 Exoneration: The Court hereby exonerates any bail, bond and/or personal recognizance conditions.

V. Notices and Signatures

5.1 Collateral Attack on Judgment. If you wish to petition or move for collateral attack on this Judgment and Sentence, including but not limited to any personal restraint petition, state habeas corpus petition, motion to vacate judgment, motion to withdraw guilty plea, motion for new trial or motion to arrest judgment, you must do so within one year of the final judgment in this matter, except as provided for in RCW 10.73.100. RCW 10.73.090.

5.2 Length of Supervision. If you committed your offense prior to July 1, 2000, you shall remain under the court's jurisdiction and the supervision of the Department of Corrections for a period up to 10 years from the date of sentence or release from confinement, whichever is longer, to assure payment of all legal financial obligations unless the court extends the criminal judgment an additional 10 years. If you committed your offense on or after July 1, 2000, the court shall retain jurisdiction over you, for the purpose of your compliance with payment of the legal financial obligations, until you have completely satisfied your obligation, regardless of the statutory maximum for the crime. RCW 9.94A.760 and RCW 9.94A.505(5). The clerk of the court has authority to collect unpaid legal financial obligations at any time while you remain under the jurisdiction of the court for purposes of your legal financial obligations. RCW 9.94A.760(4) and RCW 9.94A.753(4).

5.3 Notice of Income-Withholding Action. If the court has not ordered an immediate notice of payroll deduction in Section 4.1, you are notified that the Department of Corrections (DOC) or the clerk of the court may issue a notice of payroll deduction without notice to you if you are more than 30 days past due in monthly payments in an amount equal to or greater than the amount payable for one month. RCW 9.94A.7602. Other income-withholding action under RCW 9.94A.760 may be taken without further notice. RCW 9.94A.7606.

5.4 Community Custody Violation.
(a) If you are subject to a violation hearing and DOC finds that you committed the violation, you may receive a sanction of up to 30 days of confinement. RCW 9.94A.633(1).
(b) If you have not completed your maximum term of total confinement and you are subject to a violation hearing and DOC finds that you committed the violation, DOC may return you to a state correctional facility to serve up to the remaining portion of your sentence. RCW 9.94A.633(2)(a).

5.5a Firearms. You may not own, use or possess any firearm, and under federal law any firearm or ammunition, unless your right to do so is restored by the court in which you are convicted or the superior court in Washington State where you live, and by a federal court if required. **You must immediately surrender any concealed pistol license.** (The clerk of the court shall forward a copy of the defendant's driver's license, identicard, or comparable identification to the Department of Licensing and Washington State Patrol Firearms Background Check Program along with the date of conviction or commitment.) RCW 9.41.040 and RCW 9.41.047.

5.5b ☒ Felony Firearm Offender Registration. The defendant is required to register as a felony firearm offender. The specific registration requirements are in the "Felony Firearm Offender Registration" attachment.

5.6 Reserved

5.7 ☐ Department of Licensing Notice: The court finds that Count _____ is a felony in the commission of which a motor vehicle was used and ☒ the felony offense occurred before January 1, 2022; or ☐ the felony offense occurred after, or on, January 1, 2022 and the motor vehicle was used in a manner that endangered persons or property. RCW 46.20.285. **Clerk's Action** –The clerk shall forward an Abstract of Court Record (ACR) to the DOL, which must revoke the Defendant's driver's license. RCW 46.20.285. **Findings for DUI, Physical Control, Felony DUI or Physical Control, Vehicular Assault, or Vehicular Homicide (ACR information) (Check all that apply):**

☐ Within two hours after driving or being in physical control of a vehicle, the defendant had an alcohol concentration of breath or blood (BAC) of ____;
☐ No BAC test result.
☐ BAC Refused. The defendant refused to take a test offered pursuant to RCW 46.20.308.
☐ Drug Related. The defendant was under the influence of or affected by any drug.
☐ THC level was_____ within two hours after driving.
☐ Passenger under age 16. The defendant committed the offense while a passenger under the age of sixteen was in the vehicle.

Vehicle Info.: ☐ Commercial Veh. ☐ 16 Passenger Veh. ☐ Hazmat Veh.

5.8 ☐ Department of Licensing Notice – Defendant under age 21 only.
Count _____ is (a) a violation of RCW chapter 69.41 [Legend drug], 69.50 [VUCSA], or 69.52 [Imitation drugs], and the defendant was under 21 years of age at the time of the offense **OR** (b) a violation under RCW 9.41.040 [unlawful possession of firearm], and the defendant was under the age of 18 at the time of the offense **OR** (c) a violation under RCW chapter 66.44 [Alcohol], and the defendant was under the age of 18 at the time of the offense, **AND** the court finds that the defendant previously committed an offense while armed with a firearm, an unlawful possession of a firearm offense, or an offense in violation of chapter 66.44, 69.41, 69.50, or 69.52 RCW.
Clerk's Action –The clerk shall forward an Abstract of Court Record (ACR) to the DOL, which must revoke the Defendant's driver's license. RCW 46.20.265

5.9 Other:_____

Done in Open Court and in the presence of the defendant this date: 10/3/24

Judge/Print Name: Derek J. Vanderwood

Deputy Prosecuting Attorney	Attorney for Defendant	Defendant
WSBA No. 46828	WSBA No. 34554	Print Name:
Print Name: Kristen L Arnaud	Print Name Sean Devlin	Nicholas Jonathon A Mccoshum

Appeared via Zoom Authorized Counsel To Sign

Voting Rights Statement: I acknowledge that I have lost my right to vote because of this felony conviction. If I am registered to vote, my voter registration will be cancelled.

My right to vote will be restored when I am not serving a sentence of total confinement in the custody of DOC. My right to vote is automatically restored but I must reregister to vote prior to voting. Voting or registering to vote before the right is restored is a class C felony. RCW 29A.84.140

Defendant's signature: _____

I am a certified or registered interpreter, or the court has found me otherwise qualified to interpret, in the _____ _____ language, which the defendant understands. I interpreted this Judgment and Sentence for the defendant into that language.

I certify under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

Signed at Vancouver, Washington on (date): _____

_____ _____

Interpreter Print Name

I, Scott G. Weber, Clerk of this Court, certify that the foregoing is a full, true and correct copy of the Judgment and Sentence in the above-entitled action now on record in this office.

Witness my hand and seal of the said Superior Court affixed this date: _____.

Clerk of the Court of said county and state, by: _____, Deputy Clerk

Identification of the Defendant

Nicholas Jonathon A Mccoshum

21-1-01329-06

SID No: WA19845627 Date of Birth: 06/23/1987

FBI No. 834980XB2 Local ID No. 210280

183023

PCN No. _____ Other _____

Alias name, DOB: AKA: JONATHAN A BOOSE, AKA: NICHOLAS JONATHAN MCCOSHUM, AKA: NICHOLAS J A MCCOSHUM, AKA: NICHOLAS JONATHON A MCCOSHUM, AKA: NICHOLAS J MCCOSHUM, DOB:06/23/87

Race: **Ethnicity:** **Sex:** Male

Fingerprints: I attest that I saw the same defendant who appeared in court on this document affix his or her fingerprints and signature thereto.

Clerk of the Court, Deputy Clerk, _____ Dated:_____

The defendant's signature:

Left four fingers taken simultaneously	Left Thumb	Right Thumb	Right four fingers taken simultaneously

IN THE SUPERIOR COURT OF THE STATE OF WASHINGTON
IN AND FOR THE COUNTY OF CLARK

STATE OF WASHINGTON, Plaintiff, v. Nicholas Jonathon Alexander McCoshum, Defendant Date of Birth: 06/23/1987	No. 2021-1-01329-06 APPENDIX 2.2 DECLARATION OF CRIMINAL HISTORY

COME NOW the parties, and do hereby declare, pursuant to RCW 9.94A.525 that to the best of the knowledge of the defendant and his/her attorney, and the Prosecuting Attorney's Office, the defendant has the following undisputed prior criminal convictions:

CRIME	COUNTY/STATE CAUSE NO.	DATE OF CRIME	DATE OF SENTENCE	DV*? YES	PTS
RESIDENTIAL BURGLARY - BURGLARY 2	CLARK / WA 2001-8-01316-1	12/05/2001	02/26/2002		½
THEFT 3	CLARK / WA 527290	08/10/2002	08/27/2002		--
THEFT 3	CLARK / WA 02-8-00784-3	08/10/2002	08/27/2002		½
MALICIOUS MISCHIEF 2	CLARK / WA 2002-8-01028-3	08/19/2002	09/26/2002		--
MALICIOUS MISCHIEF 3	CLARK / WA 02-8-00786-0	08/20/2002	09/26/2002		--
MALICIOUS MISCHIEF 3	CLARK / WA 02-8-00786-0	08/20/2002	09/26/2002		--
TAKING MOTOR VEHICLE WITHOUT PERMISSION	CLARK / WA 2003-8-00070-7	01/02/2003	05/13/2003		½
RENDER CRIMINAL ASSISTANCE 1	CLARK / WA 2003-8-00070-7	01/02/2003	05/13/2003		½
ROBBERY 2	CLARK / WA 2006-1-00690-9	03/29/2006	08/10/2006		1, 2
ROBBERY 2	CLARK / WA 2006-1-01238-1	06/29/2006	08/10/2006		1, 2
USE DRUG PARAPHERNALIA	CLARK / WA 285573	09/29/2007	01/24/2008		--
HIT AND RUN ATTENDED - PROPERTY DAMAGE	CLARK / WA 741006	03/30/2010	04/21/2011		--

Clark County Prosecuting Attorney's Office
1013 Franklin St., P.O. Box 5000
Vancouver, Washington 98660

HARASSMENT	CLARK / WA 213042D	07/10/2013	07/11/2013		--
RESISTING ARREST	CLATSOP / OR 14CR26615	11/01/2014	03/04/2015		--
ATTEMPT TO COMMIT KIDNAPPING 2	CLATSOP / OR 16CR13129	03/05/2016	04/15/2016		N.C.
COERCION	CLATSOP / OR 16CR13129	03/05/2016	04/15/2016		N.C.
TOTAL SCORE FOR COUNT 1 ASSAULT IN SECOND DEGREE					**6**
TOTAL SCORE FOR COUNT 2 UPF 1					**4**

*DV: Domestic violence was pled and proved.

[ ] The defendant committed a current offense while on community placement (adds one point to score). RCW 9.94A.525.

DATED this _____ day of July, 2024.

_____
Defendant

~~DAVID COMMISA~~, WSBA~~#51645~~
Attorney for Defendant
Jean Devlin

Kristen L Arnaud, WSBA# 46828
Senior Deputy Prosecuting Attorney

Clark County Prosecuting Attorney's Office
1013 Franklin St., P.O. Box 5000
Vancouver, Washington 98660

SUPERIOR COURT OF WASHINGTON - COUNTY OF CLARK

STATE OF WASHINGTON, Plaintiff, v. Nicholas Jonathon A Mccoshum, Defendant. SID: WA19845627 DOB: 06/23/1987	NO. **21-1-01329-06** **WARRANT OF COMMITMENT TO STATE OF WASHINGTON DEPARTMENT OF CORRECTIONS**

THE STATE OF WASHINGTON, to the Sheriff of Clark County, Washington, and the State of Washington, Department of Corrections, Officers in charge of correctional facilities of the State of Washington:

GREETING:

WHEREAS, the above-named defendant has been duly convicted in the Superior Court of the State of Washington of the County of Clark of the crime(s) of:

COUNT	CRIME	RCW	DATE OF CRIME
01	ASSAULT 2 - DEADLY WEAPON	9A.36.021(1)(c) [DW]	07/10/2021
02	UNLAWFUL POSSESSION OF A FIREARM IN THE FIRST DEGREE	9.41.040(1)(a) [pre 2020]	07/10/2021

and Judgment has been pronounced and the defendant has been sentenced to a term of imprisonment in such correctional institution under the supervision of the State of Washington, Department of Corrections, as shall be designated by the State of Washington, Department of Corrections pursuant to RCW 72.02, all of which appears of record; a certified copy of said judgment being endorsed hereon and made a part hereof,

NOW, THIS IS TO COMMAND YOU, said Sheriff, to detain the defendant until called for by the transportation officers of the State of Washington, Department of Corrections, authorized to conduct defendant to the appropriate facility, and this is to command you, said Superintendent of the appropriate facility to receive defendant from said officers for confinement, classification and placement in such correctional facilities under the supervision of the State of Washington, Department of Corrections, for a term of confinement of :

COUNT	CRIME	TERM
01	ASSAULT 2 - DEADLY WEAPON	81 Months
02	UNLAWFUL POSSESSION OF A FIREARM IN THE FIRST DEGREE	45 Months

These terms shall be served concurrently to each other unless specified herein:

Department of Corrections to determine any credit for time served.

The term(s) of confinement (sentence) imposed herein shall be served consecutively to any other term of confinement (sentence) which the defendant may be sentenced to under any other cause in either District Court or Superior Court unless otherwise specified herein:

And these presents shall be authority for the same.

HEREIN FAIL NOT.

WITNESS, Honorable _____

JUDGE OF THE SUPERIOR COURT AND THE SEAL THEREOF THIS DATE: 10/3/24.

SCOTT G. WEBER, Clerk of the
Clark County Superior Court

By: _____
Deputy

EXHIBIT

2

EFILE from: Prosecuting Attorney\Kasey vu\Information.tif

E-FILED
07-14-2021, 14:03
Scott G. Weber, Clerk
Clark County

IN THE SUPERIOR COURT OF THE STATE OF WASHINGTON
IN AND FOR THE COUNTY OF CLARK

STATE OF WASHINGTON, Plaintiff, v. NICHOLAS JONATHON A MCCOSHUM, AKA JONATHAN ALEZANDER BOOSE, NICHOLAS BOOSE Defendant.	**INFORMATION** No. 21-1-01329-06 (VPD 21-14379)

COMES NOW the Prosecuting Attorney for Clark County, Washington, and does by this inform the Court that the above-named defendant is guilty of the crimes committed as follows, to wit:

COUNT 01 - ASSAULT IN THE SECOND DEGREE - 9A.36.021(1)(c)
That he, NICHOLAS JONATHON A MCCOSHUM, AKA JONATHAN ALEZANDER BOOSE, NICHOLAS BOOSE, in the County of Clark, State of Washington, on or about July 10, 2021, did intentionally assault Daniel S. Peshkov, a human being, with a deadly weapon, to-wit: a revolver; contrary to Revised Code of Washington 9A.36.021(1)(c).

And further, that the defendant did commit the foregoing offense while armed with a firearm as that term is employed and defined in RCW 9.94A.825 and RCW 9.94A.533(3), to-wit: a revolver.

This crime is a 'most serious offense' pursuant to the Persistent Offender Accountability Act (RCW 9.94A.030(33), RCW 9.94A.030(38), RCW 9.94A.505(2)(a)(iii) and RCW 9.94A.570).

COUNT 02 - UNLAWFUL POSSESSION OF A FIREARM IN THE FIRST DEGREE - 9.41.040(1)(a)
That he, NICHOLAS JONATHON A MCCOSHUM, AKA JONATHAN ALEZANDER BOOSE, NICHOLAS BOOSE, in the County of Clark, State of Washington, on or about July 10, 2021, after being convicted in the State of Washington, or anywhere else, of the crime of Robbery in the Second Degree, on August 10, 2006, in Clark County Superior Court case no. 06-1-00690-0, and/or Robbery in the Second Degree, on August 10, 2006, in Clark County Superior Court case no. 06-1-01238-1, and/or Attempted Kidnapping in the

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VANCOUVER, WASHINGTON 98666-5000
(360) 397-2261

Second Degree, on April 19, 2016, in Clatsop County, Oregon, Circuit Court case no. 16CR13129, serious offenses as defined in RCW 9.41.010(27), did knowingly own or have in his possession or control a firearm, to wit: a revolver; contrary to Revised Code of Washington 9.41.040(1)(a).

ANTHONY F. GOLIK
Prosecuting Attorney in and for
Clark County, Washington

Date: July 13, 2021

BY: Kasey T. Vu
Kasey T. Vu, WSBA #31528
Deputy Prosecuting Attorney

DEFENDANT: NICHOLAS JONATHON A MCCOSHUM, AKA JONATHAN ALEZANDER BOOSE, NICHOLAS BOOSE			
RACE: N	**SEX:** M	**DOB:** 06/23/1987	
DOL: WDL5P544903B WA		**SID:** WA19845627	
HGT: 508	**WGT:** 180	**EYES:** BLU	**HAIR:**
WA DOC: 897374		**FBI**: 834980XB2	
LAST KNOWN ADDRESS(ES):			
HOME - 4501 NE 51ST ST 36, VANCOUVER WA 98661			

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PO BOX 5000
VANCOUVER, WASHINGTON 98666-5000
(360) 397-2261

EXHIBIT

3

FILED
MAR - 3 2022 11:55
Scott G. Weber, Clerk, Clark Co.

Superior Court of Washington, County of Clark

STATE OF WASHINGTON, Plaintiff, vs. Nicholas McCoshom Defendant,	CaseNo. **21-1-01329-06** **ORDER APPOINTING COUNSEL** CUSTODY: **No**

The defendant in this cause having requested the appointment of counsel to represent him/her herein and the Court finding that said defendant is financially unable to obtain counsel without causing substantial hardship to himself/herself or his/her family, it is now therefore, ORDERED that the following member of the bar, be and hereby is, appointed as attorney for the above-named defendant;

Bar#	***41337***
NAME:	***MORSE BUSBY ANDREWS & TERRY PLLC***
ADDRESS:	***108 E MILL PLAIN BLVD 98660***
PHONE:	***360-213-2040***

NEXT COURT APPEARANCE:

JUDGE: **PRESIDING**

DATE: **3/8/2022**

TIME: **1:30 PM**

DONE IN OPEN COURT this **03** day of **March, 2022.**

3/3/2022
Date

Judge

EFILE from: Morse Busby Andrews & Terry\John Terry\SCANNER1_SMT

E-FILED
03-08-2022, 11:32
Scott G. Weber, Clerk
Clark County

IN THE SUPERIOR COURT OF THE STATE OF WASHINGTON
IN AND FOR THE COUNTY OF CLARK

STATE OF WASHINGTON, **Plaintiff,** **vs.** Nicholas J. McCoshum, **Defendant.**	**No.** 21-1-01329-06 **NOTICE OF APPEARANCE (COURT APPOINTED ATTORNEY)**

TO: The Plaintiff, the Clerk of the above-entitled Court, and to the assigned Judge:

PLEASE TAKE NOTICE that the undersigned law firm accepts the Court's appointment herein. FURTHER, the appearance of the Defendant is hereby entered by the undersigned attorney.

Dated: 3/8/22

MORSE BUSBY ANDREWS & TERRY LLP

David Commisa

Of Attorneys for Defendant, WSBA # 51645

Defense attorney of record:

[ ] JOHN C. TERRY, WSBA # 41337
[ ] RYAN M. BUSBY, WSBA # 48411
[X] DAVID C. COMMISA, WSBA # 51645
[ ] ALYOSHA C. MCCLAIN, WSBA #47829

CERTIFICATE OF SERVICE

[X] Served on Plaintiff via hand / email / mail by TJL on 3/8/22.

MORSE BUSBY ANDREWS & TERRY LLP
108 E. MILL PLAIN BLVD
Vancouver, WA 98660
Phone: (360) 213.2040
Fax: (360) 213.2030

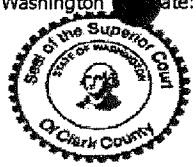
JML

EXHIBIT

4

Superior Ct Clark Co WA		
# 21-1-01329-06		
P	Ident 5	Exhibit 5
State of WA vs. Nicholas McCoshum		
Date 10/10/22		

I CERTIFY that this Document is a true and correct copy of the original now on file and of record in my office and as County Clerk I am the legal custodian thereof. Signed and sealed at Vancouver, Washington date:
This document contains 16 pages.
07-19-2022, 09:31
Janice Ables Deputy Clerk



BARRAR

S3

FILED
AUG 10 2006
JoAnne McBride, Clerk, Clark Co.

SUPERIOR COURT OF WASHINGTON
COUNTY OF CLARK

06 9 05168 7

STATE OF WASHINGTON, Plaintiff, v. JONATHAN BOOSE MCCOSHUM, aka NICHOLAS JONATHON ALEXANDER BOOSE, aka JOHNATHAN ALEZANDER BOOSE, aka NICHOLAS JONATHAN BOOSE, Defendant. SID: DOB: 6/23/1987	No. 06-1-00690-9 **FELONY JUDGMENT AND SENTENCE** (FJS) **PRISON – COMMUNITY PLACEMENT/COMMUNITY CUSTODY** **Clerk's action required;** ☐ **Paragraph 4.5 (SDOSA),** ☒ **4.15.2,** ☒ **5.3,** ☒ **5.6 and** ☐ **5.8**

I. HEARING

1.1 A sentencing hearing was held and the defendant, the defendant's lawyer and the (deputy) prosecuting attorney were present.

II. FINDINGS

There being no reason why judgment should not be pronounced, the Court FINDS:

2.1 CURRENT OFFENSE(S): The defendant was found guilty on August 10, 2006, by ☒ plea ☐ jury-verdict ☐ bench trial of:

COUNT	CRIME	RCW	DATE OF CRIME
01	ROBBERY IN THE SECOND DEGREE	9A.56.190/9A.56.210	3/28/2006 to 3/29/2006

(If the crime is a drug offense, include the type of drug in the second column.)
as charged in the Amended Information.

☐ Additional current offenses are attached in Appendix 2.1.

☐ The Court finds that the defendant is subject to sentencing under **RCW 9.94A.712.**

☐ A special verdict/finding for use of **firearm** was returned on Count(s) _____. RCW 9.94A.602, 533.

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16

This document certified by Monica Aviles, Deputy Clerk, Clark County, Washington.

07-19-2022, 09:31

☐ A special verdict/finding for use of **deadly weapon** other than a firearm was returned on Count(s) _____. RCW 9.94A.602, .533.

☐ A special verdict/finding of **sexual motivation** was returned on Count(s) _____. RCW 9.94A.835.

☐ A special verdict/finding for **Violation of the Uniform Controlled Substances Act** was returned on Count(s) _____, RCW 69.50.401 and RCW 69.50.435, taking place in a school, school bus, within 1000 feet of the perimeter of a school grounds or within 1000 feet of a school bus route stop designated by the school district; or in a public park, public transit vehicle, or public transit stop shelter; or in, or within 1000 feet of the perimeter of, a civic center designated as a drug-free zone by a local government authority, or in a public housing project designated by a local governing authority as a drug-free zone.

☐ A special verdict/finding that the defendant committed a crime involving the manufacture of methamphetamine, including its salts, isomers, and salts of isomers, **when a juvenile was present in or upon the premises of manufacture** was returned on Count(s) _____. RCW 9.94A.605, RCW 69.50.401, RCW 69.50.440.

☐ The defendant was convicted of **vehicular homicide** which was proximately caused by a person driving a vehicle while under the influence of intoxicating liquor or drug or by the operation of a vehicle in a reckless manner and is therefore a violent offense. RCW 9.94A.030.

☐ This case involves **kidnapping** in the first degree, kidnapping in the second degree, or unlawful imprisonment as defined in chapter 9A.40 RCW, where the victim is a minor and the offender is not the minor's parent. RCW 9A.44.130

☐ The court finds that the offender has a **chemical dependency** that has contributed to the offense(s). RCW 9.94A.607.

☐ The crimes charged in Count(s) _____ is/are **Domestic Violence** offense(s) as that term is defined in RCW 10.99.020:

☐ Current offenses encompassing the same criminal conduct and counting as one crime in determining the offender score are Count(s) _____. RCW 9.94A.589

☐ Additional misdemeanor crime(s) pertaining to this cause number are contained in a separate Judgment and Sentence.

☒ Other current convictions listed under different cause numbers used in calculating the offender score are (list offense and cause number): #06-1-01238-1 Robbery 2.

2.2 CRIMINAL HISTORY (RCW 9.94A.525):

CRIME	DATE OF SENTENCE	SENTENCING COURT (County & State)	DATE OF CRIME	A or J Adult, Juv.	TYPE OF CRIME
See Attached Criminal History					

☒ Additional criminal history is attached in Appendix 2.2.

☐ The defendant committed a current offense while on community placement (adds one point to score). RCW 9.94A.525.

☐ The court finds that the following prior convictions are one offense for purposes of determining the offender score RCW 9.94A.525:_____

☐ The following prior convictions are not counted as points but as enhancements pursuant to RCW 46.61.520:_____

☐ The State has moved to dismiss count(s) _____.

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This document certified by Monica Aviles, Deputy Clerk, Clark County, Washington.

07-19-2022, 09:31

2.3 SENTENCING DATA:

COUNT NO.	OFFENDER SCORE	SERIOUS-NESS LEVEL	STANDARD RANGE (not including enhancements)	PLUS ENHANCEMENTS*	TOTAL STANDARD RANGE (including enhancements)	MAXIMUM TERM
01	4	IV	15 MONTHS to 20 MONTHS		15 MONTHS to 20 MONTHS	10 YEARS $20,000

* (F) Firearm, (D) other Deadly Weapons, (V) VUCSA in a protected zone, (VH) Veh. Hom, see RCW 46.61.520, (JP) Juvenile present

☐ Additional current offense sentencing data is attached in Appendix 2.3.

2.4 ☐ EXCEPTIONAL SENTENCE. Substantial and compelling reasons exist which justify an exceptional sentence ☐ above ☐ within ☐ below the standard range for Count(s) _____.

☐ The defendant and the State stipulate that justice is best served by imposition of the exceptional sentence above the standard range and the court finds the exceptional sentence furthers and is consistent with the interests of justice and the purposes of the Sentencing Reform Act.

☐ Aggravating factors were: ☐ stipulated to by the defendant, ☐ admitted by the defendant in the Guilty Plea, ☐ found by the court after the defendant waived jury trial, ☐ found by jury by special interrogatory.

☐ The defendant waives his right to have a jury determine any issues regarding the imposition of an exceptional sentence upward. *Apprendi v. New Jersey, 530 U.S. 466, 120 S. Ct 2348, 147 L. Ed 2d 435 (2000), Blakely v. Washington, ___ U.S. ___, 124 S. Ct. 2531, 159 L. Ed. 2d 403 (2004).*

☐ Findings of fact and conclusions of law are attached in Appendix 2.4. ☐ Jury's special interrogatory is attached. The Prosecuting Attorney ☐ did ☐ did not recommend a similar sentence.

2.5 ABILITY TO PAY LEGAL FINANCIAL OBLIGATIONS. The court has considered the total amount owing, the defendant's past, present and future ability to pay legal financial obligations, including the defendant's financial resources and the likelihood that the defendant's status will change. The court finds that the defendant has the ability or likely future ability to pay the legal financial obligations imposed herein. RCW 9.94A.750/753.

☐ The following extraordinary circumstances exist that make restitution inappropriate (RCW 9.94A.753): _____.

2.6 For violent offenses, most serious offenses, or armed offenders recommended sentencing agreements or plea agreements are ☐ attached ☐ as follows:

_____.

2.7 If no formal written plea agreement exists, the agreement is as set forth in the Defendant's Statement on Plea of Guilty.

III. JUDGMENT

3.1 The defendant is GUILTY of the Counts and Charges listed in Paragraph 2.1 and Appendix 2.1.

3.2 ☐ The Court DISMISSES Counts _____.

☐ The defendant is found NOT GUILTY of Counts _____.

3.3 There ☐ do ☐ do not exist substantial and compelling reasons justifying an exceptional sentence outside the presumptive sentencing range.

IV. SENTENCE AND ORDER

IT IS ORDERED:

4.1 Defendant shall pay to the Clerk of this Court:

CLARK COUNTY PROSECUTING ATTORNEY
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VANCOUVER, WASHINGTON 98666-5000
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RTN/RJN	$ To be set	Restitution to be paid to: ☒ Victim(s) and amounts to be set by separate court order		RCW 9.94A.750/ .753
PCV	$500.00	Victim Assessment		RCW 7.68.035
	$ _____	DV Penalty Assessment		RCW 10.99.080
CRC		Court Costs, including RCW 9.94A.760, 9.94A.505, 10.01.160, 10.46.190		
	$ 200.00	Criminal filing fee	FRC	RCW 9.94A.505
	$ _____	Witness costs	WFR	RCW 10.01.160 and RCW 2.40.010
	$ _____	Sheriff Service Fees	SFR/SFS/SFW/WRF	RCW 10.01.160 and 36.18.040
	$ _____	Jury Demand Fee $ 250.00	JFR	RCW 10.01.160 and 10.46.190
	$ _____	Extradition costs	EXT	RCW 9.94A.505
	$ _____	Other Costs _____		RCW 9.94A.760
PUB	$700.00 $ _____	Fees for court appointed attorney Trial per diem if applicable		RCW 9.94A.505/ .760/.030
WFR	$_____	Court appointed defense expert and other defense costs		RCW 9.94A.505, .760, 9.94A.030
FCM/MTH	$500.00	Fine		RCW 9A.20.021
CDF/LDI/FCD/ NTF/SAD/SDI	$_____	Drug fund contribution to be paid within two (2) years Fund # ☐ 1015 ☐ 1017 (TF)		RCW 9.94A.760
CLF	$_____	Crime lab fee - ☐ Suspended due to indigency		RCW 43.43.690
	~~$100.00~~	Felony DNA Collection fee (for crimes committed on or after July 1, 2002)		RCW 43.43.7541
RTN/RJN	$_____	Emergency response costs (Vehicular Assault, Vehicular Homicide only, $1000 maximum) To: _____ (List Law Enforcement Agency)		RCW 38.52.430
	$_____	Other Costs for: _____		RCW 9.94A.760

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☒ The above financial obligations do not include all restitution or other legal financial obligations, which may be set by later order of the court. An agreed restitution order may be entered. RCW 9.94A.750/753. A restitution hearing:
☒ shall be set by the prosecutor
☐ is scheduled for _____

☐ Restitution ordered above shall be joint and several with the co-defendants listed in the Information or identified below: _____.

☒ The Department of Corrections/Superior Court Clerk Collections Unit shall immediately issue a Notice of Payroll Deduction. RCW 9.94A.7602, RCW 9.94A.760(8).

☒ All payments shall be made in accordance with the policies of the Superior Court Clerk and on a schedule established by the Department of Corrections/Superior Court Clerk Collections Unit, commencing immediately, unless the court specifically sets forth the rate here:

Not less than $_____ per month commencing _____. RCW 9.94A.760.

☒ The defendant shall report as directed by the Superior Court Clerk and provide financial information as requested. RCW 9.94A.760(7)(b). The defendant shall report in person no later than the close of business on the next working day after the date of sentencing or release from custody. A map has been provided to the defendant showing the location of the Superior Court Clerk Collections Unit, 500 West 8th Street, Suite 50, Vancouver, Washington. The defendant must report any changes in address and phone numbers to the Collections Unit within 72 hours of moving.

☐ In addition to the other costs imposed herein, the Court finds that the defendant has the means to pay for the cost of incarceration and is ordered to pay such costs at the statutory rate of $_____. RCW 9.94A.760

☒ The financial obligations imposed in this judgment shall bear interest from the date of the Judgment until payment in full, at the rate applicable to civil judgments. RCW 10.82.090. An award of costs on appeal against the defendant may be added to the total legal financial obligations. RCW 10.73.160. The defendant shall pay the cost of services to collect unpaid legal financial obligations. This is an annual fee which will be automatically renewed until financial obligations are completed. RCW 9.94A.780 and RCW 36.18.190

4.2 ☒ DNA TESTING. The defendant shall have a biological sample collected for purposes of DNA identification analysis and the defendant shall fully cooperate in the testing. The appropriate agency, the county or Department of Corrections, shall be responsible for obtaining the sample prior to the defendant's release from confinement. RCW 43.43.754.

☐ HIV TESTING. The defendant shall be tested and counseled for HIV as soon as possible and the defendant shall fully cooperate in the testing and counseling. RCW 70.24.340.

Failure to provide the DNA/HIV testing sample is a violation of this Judgment and Sentence and a warrant may be issued to compel compliance.

4.3 The defendant shall not have contact with Christopher James Patterson, Amanda L Vanhorn, Michael J Fraser including, but not limited to, personal, verbal, telephonic, electronic, written or contact through a third party for 10 years (not to exceed the maximum statutory sentence).
☐ Supplemental Domestic Violence Protection Order or Antiharassment Order attached as Form 4.3.

4.4 **OTHER:** _____

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4.5 **CONFINEMENT OVER ONE YEAR.** The defendant is sentenced as follows:

(a) **CONFINEMENT.** RCW 9.94A.589. Defendant is sentenced to the following term of confinement in the custody of the Department of Corrections:

15 months on Count 01

Actual number of months of total confinement ordered is: 15

(Add mandatory firearm and deadly weapons enhancement time to run consecutively to other counts, see Section 2.3, Sentencing Data, above).

☐ The confinement time on Count(s) _____ contain a mandatory minimum term of _____.

All counts shall be served concurrently, except for the portion of those counts for which there is a special finding of a firearm or other deadly weapon as set forth above at Section 2.3, and except for the following counts which shall be served consecutively: _____

The term(s) of confinement (sentence) imposed herein shall be served consecutively to any other term of confinement (sentence) which the defendant may be sentenced to under any other cause in either District Court or Superior Court unless otherwise specified herein: TO RUN CONCURRENT WITH #06-1-01238-1 ROBBERY 2.

Confinement shall commence immediately unless otherwise set forth here: _____

_____

(b) CONFINEMENT. RCW 9.94A.712 (Sex Offenses only): The defendant is sentenced to the following term of confinement in the custody of the DOC:

Count	minimum term	maximum term
01		

(c) Credit for 60 days time served prior to this date is given, said confinement being solely related to the crimes for which the defendant is being sentenced. RCW 9.94A.505

4.6 ☐ **COMMUNITY PLACEMENT** is ordered on Counts _____ for _____ months

☒ **COMMUNITY CUSTODY** is ordered on Counts I for a range from 19 to 36 months or for the period of earned release awarded pursuant to RCW 9.94A.728(1) and (2), whichever is longer, and standard mandatory conditions are ordered. [See RCW 9.94A.700 and .705 for community placement offenses which include serious violent offenses, second degree assault, any crime against a person with a deadly weapon finding and Chapter 69.50 or 69.52 RCW offenses not sentenced under RCW 9.94A.660 committed before July 1, 2000. See RCW 9.94A.715 for community custody range offenses, which include sex offenses not sentenced under RCW 9.94A.712 and violent offenses committed on or after July 1, 2000.Community custody follows a term for a sex offense –RCW 9.94A.505. Use paragraph 4.7 to impose community custody following work ethic camp.]

On or after July 1, 2003, DOC shall supervise the defendant if DOC classifies the defendant in the A or B risk categories; or, DOC classifies the defendant in the C or D risk categories and at least one of the following apply:

a) the defendant commited a current or prior:		
i) Sex offense	ii) Violent offense	iii) Crime against a person (RCW 9.94A.411)
iv) Domestic violence offense (RCW 10.99.020)		v) Residential burglary offense
vi) Offense for manufacture, delivery or possession with intent to deliver methamphetamine		
vii) Offense for delivery of a controlled substance to a minor; or attempt, solicitation or conspiracy (vi, vii)		
b) the conditions of community placement or community custody include chemical dependency treatment.		
c) the defendant is subject to supervision under the interstate compact agreement, RCW 9.94A.745.		

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While on community placement or community custody, the defendant shall: (1) report to and be available for contact with the assigned community corrections officer as directed; (2) work at DOC-approved education, employment and/or community restitution (service); (3) not consume controlled substances except pursuant to lawfully issued prescriptions; (4) not unlawfully possess controlled substances while in community custody; (5) pay supervision fees as determined by DOC; and (6) perform affirmative acts necessary to monitor compliance with the orders of the court as required by DOC. The residence location and living arrangements are subject to the prior approval of DOC while in community placement or community custody. Community custody for sex offenders not sentenced under RCW 9.94A.712 may be extended for up to the statutory maximum term of the sentence. Violation of community custody imposed for a sex offense may result in additional confinement.

The defendant shall be on community placement/community custody under the charge of the Department of Corrections and shall follow and comply with the instructions, rules and regulations promulgated by said Department for the conduct of the defendant during the period of community placement/community custody and any other conditions stated in this Judgment and Sentence. The defendant's conditions of Community Placement/Community Custody include the following:

☒ The defendant shall not consume any alcohol.

☐ Defendant shall have no contact with _____.

☐ Defendant shall remain ☐ within ☐ outside of a specified geographical boundary, to wit: _____

☐ Defendant shall not reside in a community protection zone (within 880 feet of the facilities or grounds of a public or private school). (RCW 9.94A.030(8)).

☐ The defendant shall participate in the following crime-related treatment or counseling services: _____

☒ Defendant shall not violate any federal, state or local criminal laws, and shall not be in the company of any person known by him/her to be violating such laws.

☒ Defendant shall not commit any like offenses.

☒ Defendant shall notify his/her community corrections officer within forty-eight (48) hours of any arrest or citation.

☒ Defendant shall not initiate or permit communication or contact with persons known to him/her to be convicted felons, or presently on probation, community supervision/community custody or parole for any offense, juvenile or adult, except immediate family or as authorized by his/her community corrections officer for treatment purposes. Additionally, the defendant shall not initiate or permit communication or contact with the following persons: _____

☒ Defendant shall not have any contact with other participants in the crime, either directly or indirectly.

☒ Defendant shall not initiate or permit communication or contact with persons known to him/her to be substance abusers.

☒ Defendant shall not possess, use or deliver drugs prohibited by the Uniform Controlled Substances Act, or any legend drugs, except by lawful prescription. The defendant shall notify his/her community corrections officer on the next working day when a controlled substance or legend drug has been medically prescribed.

☒ Defendant shall not possess or use any paraphernalia that can be used for the ingestion or processing of controlled substances or that can be used to facilitate the sale or transfer of controlled substances including scales, pagers, cellular phones, police scanners, and hand held electronic scheduling and data storage devices.

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☒ Defendant shall not frequent known drug activity areas or residences.

☐ Defendant shall not use or possess alcoholic beverages ☐ at all ☐ to excess.

The defendant ☐ will ☐ will not be required to take monitored antabuse per his/her community corrections officer's direction, at his/her own expense, as prescribed by a physician.

☐ Defendant shall not be in any place where alcoholic beverages are sold by the drink for consumption or are the primary sale item.

☐ Defendant shall undergo an evaluation for treatment for ☐ substance abuse ☐ mental health ☐ anger management treatment and fully comply with all recommended treatment.

☐ Defendant shall enter into, cooperate with, fully attend and successfully complete all in-patient and outpatient phases of a ☐ substance abuse ☐ mental health ☐ anger management treatment program as established by the community corrections officer and/or the treatment facility.

☐ Defendant shall participate in a **domestic violence perpetrator program** as approved under RCW 26.50.150 and fully comply with all recommended treatment. RCW 9.94A.505 (11).

☐ Based upon the Pre-Sentence Report, the court finds reasonable grounds to exist to believe the defendant is a mentally ill person, and this condition was likely to have influenced the offense. Accordingly, the court orders the defendant to undergo a mental status evaluation and participate in outpatient mental health treatment. Further, the court may order additional evaluations at a later date, if deemed appropriate.

☐ Treatment shall be at the defendant's expense and he/she shall keep his/her account current if it is determined that the defendant is financially able to afford it.

☒ Defendant shall submit to urine, breath or other screening whenever requested to do so by the treatment program staff and/or the community corrections officer.

☐ Defendant shall not associate with any persons known by him/her to be gang members or associated with gangs.

☐ Defendant shall not wear or display any clothing, apparel, insignia or emblems that he/she knows are associated with or represent gang affiliation or membership as determined by the community corrections officer.

☐ Defendant shall not possess any gang paraphernalia as determined by the community corrections officer.

☐ Defendant shall not use or display any names, nicknames or monikers that are associated with gangs.

☐ Defendant shall comply with a curfew, the hours of which are established by the community corrections officer.

☐ Defendant shall attend and successfully complete a shoplifting awareness educational program as directed by the community corrections officer.

☐ Defendant shall attend and successfully complete the Victim Awareness Educational Program as directed by the community corrections officer.

☐ Defendant shall not accept employment in the following field(s):

_____

☐ Defendant shall not possess burglary tools.

☐ Defendant's privilege to operate a motor vehicle is suspended/revoked for a period of one year; two years if the defendant is being sentenced for a vehicular homicide.

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- ☐ Defendant shall not operate a motor vehicle without a valid driver's license and proof of liability insurance in his/her possession.
- ☐ Defendant shall not possess a checkbook or checking account.
- ☐ Defendant shall not possess any type of access device or P.I.N. used to withdraw funds from an automated teller machine.
- ☒ Defendant shall submit to affirmative acts necessary to monitor compliance with the orders of the court as required by the Department of Corrections.
- ☒ Defendant shall not be eligible for a Certificate of Discharge until all financial obligations are paid in full and all conditions/requirements of sentence have been completed including no contact provisions.
- ☐ Defendant shall not enter into or frequent business establishments or areas that cater to minor children without being accompanied by a responsible adult. Such establishments may include but are not limited to video game parlors, parks, pools, skating rinks, school grounds, malls or any areas routinely used by minors as areas of play/recreation.
- ☐ Defendant shall not have any unsupervised contact with minors. Minors mean persons under the age of 18 years.
- ☐ Defendant shall enter into, cooperate with, fully attend and successfully complete all in-patient and outpatient phases of a sexual deviancy treatment program as established by the community corrections officer and/or the treatment facility. "Cooperate with" means the offender shall follow all treatment directives, accurately report all sexual thoughts, feelings and behaviors in a timely manner and cease all deviant sexual activity.
- ☐ Defendant shall submit to periodic polygraph examinations at the direction of his/her community corrections officer to ensure compliance with the conditions of community placement/custody.
- ☐ Defendant shall submit to periodic plethysmograph examinations at the direction of his/her community corrections officer to ensure compliance with the conditions of community placement/custody.
- ☐ Defendant shall not possess or use any pornographic material, defined as any pictorial material displaying direct physical stimulation of unclothed genitals, masturbation, sodomy (i.e. bestiality or oral or anal intercourse), flagellation or torture in the context of a sexual relationship, or emphasizing the depiction of adult or child human genitals: provided however, that works of art or of anthropological significance shall not be deemed to be within the foregoing definition as defined in RCW 9.68.130(2).or any equipment of any kind used for sexual gratification and defendant shall not frequent establishments that provide such materials or equipment for view or sale.
- ☐ If the defendant is removed/deported by the U.S. Immigration and Customs Enforcement, the community custody time is tolled during that time that the defendant is not reporting for supervision in the United States. The defendant shall not enter the United States without the knowledge and permission of U.S. Immigration and Customs Enforcement. If the defendant re-enters the United States, he/she shall immediately report to the Department of Corrections for supervision.
- ☒ Defendant shall sign necessary release of information documents as required by the Department of Corrections.

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☐ Defendant shall adhere to the following additional crime-related prohibitions or conditions of community placement/community custody:

_____

_____

_____

4.7 **OFF LIMITS ORDER** (known drug trafficker) RCW 10.66.020. The following areas are off limit to the defendant while under the supervision of the County Jail or Department of Corrections:

_____

4.8 The Bail or release conditions previously imposed are hereby exonerated and the clerk shall disburse it to the appropriate person(s).

4.9 This case shall not be placed on inactive or mail-in status until all financial obligations are paid in full.

4.10 When there is a reasonable cause to believe that the defendant has violated a condition or requirement of this sentence, the defendant shall allow, and the Department of Corrections can conduct, searches of the defendant's person, residence, automobile or other personal property. Residence searches shall include access, for the purposes of visual inspection, all areas of the residence in which the defendant lives or has exclusive/joint control/access and automobiles owned and possessed by the defendant.

4.11 Other:

_____

_____

V. NOTICES AND SIGNATURES

5.1 **COLLATERAL ATTACK ON JUDGMENT**. Any petition or motion for collateral attack on this judgment and sentence, including but not limited to any personal restraint petition, state habeas corpus petition, motion to vacate judgment, motion to withdraw guilty plea, motion for new trial or motion to arrest judgment, must be filed within one year of the final judgment in this matter, except as provided for in RCW 10.73.100. RCW 10.73.090

5.2 **LENGTH OF SUPERVISION** For an offense committed prior to July 1, 2000, the defendant shall remain under the court's jurisdiction and the supervision of the Department of Corrections for a period up to ten (10) years from the date of sentence or release from confinement, whichever is longer, to assure payment of all legal financial obligations. For an offense committed on or after July 1, 2000, the court shall retain jurisdiction over the offender, for the purposes of the offender's compliance with payment of the legal financial obligations, until the obligation is completely satisfied, regardless of the statutory maximum for the crime. RCW 9.94A.760 and RCW 9.94A505(5). The clerk of the court is authorized to collect unpaid legal financial obligations at any time the offender remains under the jurisdiction of the court for purposes of his or her legal financial obligations. RCW 9.94A.760(4) and RCW 9.94A.753(4).

5.3 **NOTICE OF INCOME-WITHHOLDING ACTION.** If the court has not ordered an immediate notice of payroll deduction in Section 4.1, you are notified that the Department of Corrections may issue a notice of payroll deduction without notice to you if you are more than 30 days past due in monthly payments in an amount equal to or greater than the amount payable for one month. RCW 9.94A.7602. Other income-withholding action under RCW 9.94A may be taken without further notice. RCW 9.94A.7606

5.4 **RESTITUTION HEARING.**
☐ Defendant waives any right to be present at any restitution hearing (sign initials):_____

5.5 Any violation of this Judgment and Sentence is punishable by up to 60 days of confinement per violation. RCW 9.94A.634

5.6 **FIREARMS. You must immediately surrender any concealed pistol license and you may not own, use or possess any firearm unless your right to do so is restored by a court of record.** (The court clerk shall forward a copy of the defendant's driver's license, identicard, or comparable

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Identification to the Department of Licensing along with the date of conviction or commitment). RCW 9.41.040, 9.41. 047

Cross off if not applicable:

5.7 **SEX AND KIDNAPPING OFFENDER REGISTRATION.** RCW 9A.44.130, 10.01.200.

1. General Applicability and Requirements: Because this crime involves a sex offense or kidnapping offense involving a minor as defined in Chapter 9A.44.130, you are required to register with the sheriff of the county of the state of Washington where you reside. If you are not a resident of Washington but you are a student in Washington or you are employed in Washington or you carry on a vocation in Washington, you must register with the sheriff of the county of your school, place of employment, or vocation. You must register immediately upon being sentenced unless you are in custody, in which case you must register within 24 hours of your release.

2. Offenders Who Leave the State and Return: If you leave the state following your sentencing or release from custody but later move back to Washington, you must register within 3 business days after moving to this state or within 24 hours after doing so if you are under the jurisdiction of this state's Department of Corrections. If you leave this state following your sentencing or release from custody but later while not a resident of Washington you become employed in Washington, carry out a vocation in Washington, or attend school in Washington, you must register within 3 business days after starting school in this state or becoming employed or carrying out a vocation in this state, or within 24 hours after doing so if you are under the jurisdiction of this state's Department of Corrections.

3. Change of Residence Within State and Leaving the State: If you change your residence within a county, you must send signed, written notice of your change of residence to the sheriff within 72 hours of moving. If you change your residence to a new county within this state, you must send signed written notice of your change of residence to the sheriff of your new county of residence at least 14 days before moving, register with that sheriff within 24 hours of moving and you must give signed written notice of your change of address to the sheriff of the county where last registered within 10 days of moving. If you move out of Washington State, you must also send written notice within 10 days of moving to the county sheriff with whom you last registered in Washington State.

4. Additional Requirements Upon Moving to Another State: If you move to another state, or if you work, carry on a vocation or attend school in another state, you must register a new address, fingerprints and photograph with the new state within 10 days after establishing residence, or after beginning to work, carry on a vocation or attend school in the new state. You must also send written notice within 10 days of moving to the new state or to a foreign country to the county sheriff with whom you last registered in Washington State.

5. Notification Requirement when Enrolling in or Employed by a Public or Private Institution of Higher Education or Common School (K-12): If you are a resident of Washington and you are admitted to a public or private institution of higher education, you are required to notify the sheriff of the county of your residence of your intent to attend the institution within 10 days of enrolling or by the first business day after arriving at the institution, whichever is earlier. If you become employed at a public or private institution of higher education, you are required to notify the sheriff for the county of your residence of your employment by the institution within 10 days of accepting employment or by the first business day after beginning to work at the institution, whichever is earlier. If your enrollment or employment at a public or private institution of higher education is terminated, you are required to notify the sheriff for the county of your residence of your termination of enrollment or employment within 10 days of such termination. (Effective September 1, 2006) If you attend, or plan to attend a public or private school regulated under Title 28A RCW or chapter 72.40 RCW, you are required to notify the sheriff of the county of your residence of your intent to attend the school. You must notify the sheriff within 10 days of enrolling or 10 days prior to arriving at the school to attend classes, whichever is earlier. If you are enrolled on September 1, 2006, you must notify the sheriff immediately. The sheriff shall promptly notify the principal of the school.

6. Registration by a Person Who Does Not Have a Fixed Residence: Even if you do not have a fixed residence, you are required to register. Registration must occur within 24 hours of release in the county where you are being supervised if you do not have a residence at the time of your release from custody. Within 48 hours excluding weekends and holidays after losing your fixed residence you must send signed written notice to the sheriff of the county where you last registered. If you enter a different county and stay there for more than 24 hours, you will be required to register in the new county. You must also report weekly in person to the sheriff of the county where you are registered. The weekly report shall be on a day

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specified by the county sheriff's office, and shall occur during normal business hours. The county sheriff's office may require you to list the locations where you have stayed during the last seven days. The lack of a fixed residence is a factor that may be considered in determining a sex offender's risk level and shall make the offender subject to disclosure of information to the public at large pursuant to RCW 4.24.550

7. Reporting Requirements for Persons Who Are Risk Level II or III: If you have a fixed residence and are designated as a risk level II or III, you must report in person every 90 days to the sheriff of the county where you are registered. Reporting shall be on a day specified by the county sheriff's office, and shall occur during normal business hours. If you comply with the 90-day reporting requirement with no violations for at least five years in the community, you may petition the Superior Court to e relieved of the duty to report every 90 days.

8. Application for a Name Change: If you apply for a name change, you must submit a copy of the application to the county sheriff of the county of your residence and to the state patrol not fewer than five days before the entry of an order granting the name change. If you receive an order changing your name, you must submit a copy of the order to the county sheriff of the county of your residence and to the state patrol within 5 days of the entry of the order. RCW 9A.44.130(7).

5.8 ☐ The court finds that Count _____ is a felony in the commission of which a motor vehicle was used. The court clerk is directed to immediately punch the defendant's Washington Driver's license or permit to drive with a "C" as directed by the Department of Licensing pursuant to RCW 46.20.270.

5.9 If the defendant is or becomes subject to a court-ordered mental health or chemical dependency treatment, the defendant must notify the Department of Corrections and the defendant's treatment information must be shared with DOC for the duration of the defendant's incarceration and supervision. RCW 9.94A.562.

5.10 Persistent Offense Notice

☐ The crime(s) in count(s) _____ is/are "most serious offense(s)." Upon a third conviction of a "most serious offense", the court will be required to sentence the defendant as a persistent offender to life imprisonment without the possibility of early release of any kind, such as parole or community custody. RCW 9.94A.030 (28 & 32(a)), 9.94A.505

☐ The crime(s) in count(s) _____ is/are one of the listed offenses in RCW 9.94A.030 (32)(b). Upon a second conviction of one of these listed offenses, the court will be required to sentence the defendant as a persistent offender to life imprisonment without the possibility of early release of any kind, such as parole or community custody.

5.11 **OTHER:** _____

DONE in Open Court and in the presence of the defendant this date: August 10, 2006.

JUDGE OF THE SUPERIOR COURT

Print Name: Robert Harris

Anthony F. Golik, WSBA #25172
Deputy Prosecuting Attorney

Jeffrey D. Barrar, WSBA #16281
Attorney for Defendant

JONATHAN BOOSE MCCOSHUM
Defendant

CLARK COUNTY PROSECUTING ATTORNEY
1013 FRANKLIN STREET • PO BOX 5000
VANCOUVER, WASHINGTON 98666-5000
(360) 397-2261 (OFFICE)
(360) 397-2230 (FAX)

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07-19-2022, 09:31

SUPERIOR COURT OF WASHINGTON - COUNTY OF CLARK

STATE OF WASHINGTON, Plaintiff, v. JONATHAN BOOSE MCCOSHUM, aka NICHOLAS JONATHON ALEXANDER BOOSE, aka JOHNATHAN ALEZANDER BOOSE, aka NICHOLAS JONATHAN BOOSE, Defendant. SID: DOB: 6/23/1987	NO. 06-1-00690-9 **WARRANT OF COMMITMENT TO STATE OF WASHINGTON DEPARTMENT OF CORRECTIONS**

THE STATE OF WASHINGTON, to the Sheriff of Clark County, Washington, and the State of Washington, Department of Corrections, Officers in charge of correctional facilities of the State of Washington:

GREETING:

WHEREAS, the above-named defendant has been duly convicted in the Superior Court of the State of Washington of the County of Clark of the crime(s) of:

COUNT	CRIME	RCW	DATE OF CRIME
01	ROBBERY IN THE SECOND DEGREE	9A.56.190/9A.56.210	3/28/2006 to 3/29/2006

and Judgment has been pronounced and the defendant has been sentenced to a term of imprisonment in such correctional institution under the supervision of the State of Washington, Department of Corrections, as shall be designated by the State of Washington, Department of Corrections pursuant to RCW 72.13, all of which appears of record; a certified copy of said judgment being endorsed hereon and made a part hereof,

NOW, THIS IS TO COMMAND YOU, said Sheriff, to detain the defendant until called for by the transportation officers of the State of Washington, Department of Corrections, authorized to conduct defendant to the appropriate facility, and this is to command you, said Superintendent of the appropriate facility to receive defendant from said officers for confinement, classification and placement in such correctional facilities under the supervision of the State of Washington, Department of Corrections, for a term of confinement of :

COUNT	CRIME	TERM
01	ROBBERY IN THE SECOND DEGREE	15 months

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These terms shall be served concurrently to each other unless specified herein:

The defendant has credit for 60 days served.

The term(s) of confinement (sentence) imposed herein shall be served consecutively to any other term of confinement (sentence) which the defendant may be sentenced to under any other cause in either District Court or Superior Court unless otherwise specified herein: TO RUN CONCURRENT WITH #06-1-01238-1 ROBBERY 2.

And these presents shall be authority for the same.

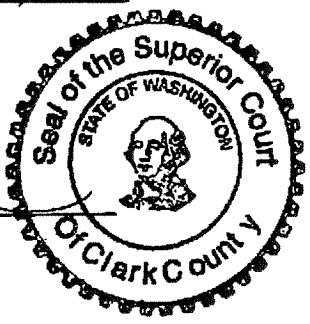
HEREIN FAIL NOT.

WITNESS, Honorable Ronald Hoff

JUDGE OF THE SUPERIOR COURT AND THE SEAL THEREOF THIS DATE: 8-10-06.

JOANNE McBRIDE, Clerk of the
Clark County Superior Court

By: Kelly Colvin
Deputy



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07-19-2022, 09:31

CAUSE NUMBER of this case: 06-1-00690-9

VOTING RIGHTS STATEMENT: I acknowledge that my right to vote has been lost due to felony conviction. If I am registered to vote, my voter registration will be cancelled. My right to vote may be restored by: a) A certificate of discharge issued by the sentencing court, RCW 9.94A.637; b) A court order issued by the sentencing court restoring the right, RCW 9.92.066; c) A final order of discharge issued by the indeterminate sentence review board, RCW 9.96.050; or d) A certificate of restoration issued by the governor, RCW 9.96.020. Voting before the right is restored is a class C felony, RCW 92A.84.660.

Defendant's signature: _____.

I am a certified interpreter of, or the court has found me otherwise qualified to interpret, the _____ language, which the defendant understands. I translated this Judgment and Sentence for the defendant into that language.

Interpreter signature/Print name:_____

I, JOANNE McBRIDE, Clerk of this Court, certify that the foregoing is a full, true and correct copy of the Judgment and Sentence in the above-entitled action now on record in this office.

WITNESS my hand and seal of the said Superior Court affixed this date: _____.

Clerk of said County and State, by:_____, Deputy Clerk

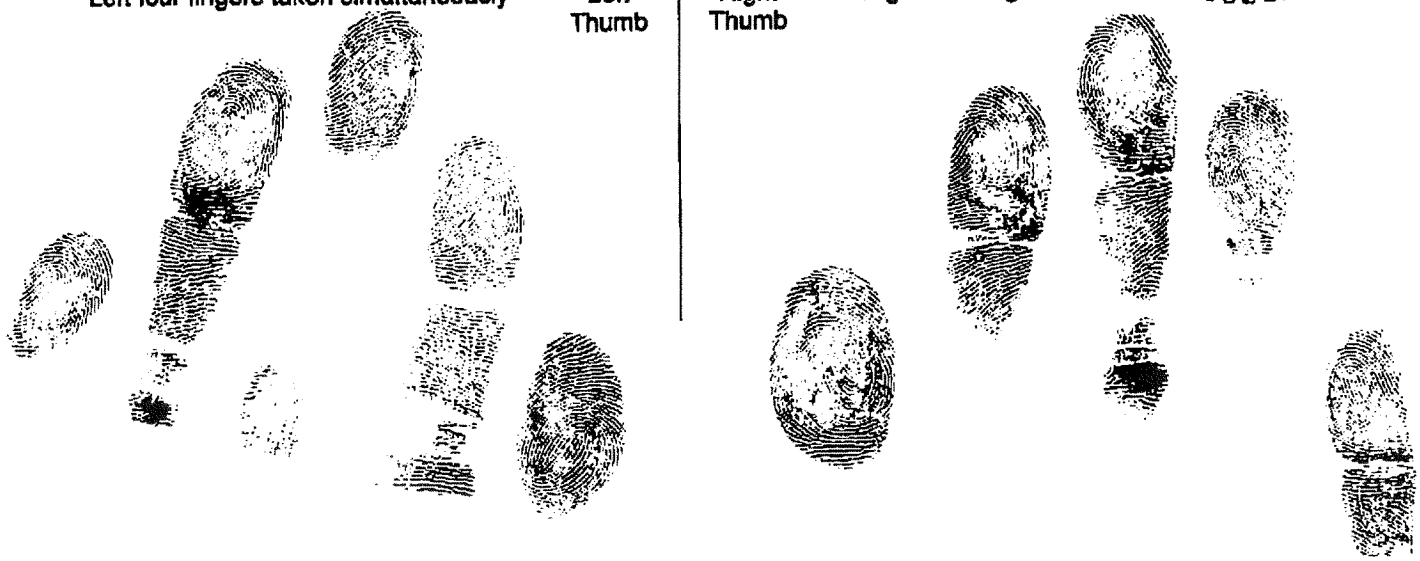
IDENTIFICATION OF DEFENDANT JONATHAN BOOSE MCCOSHUM	
Alias name, SSN, DOB: NICHOLAS JONATHON ALEXANDER BOOSE; JOHNATHAN ALEZANDER BOOSE; NICHOLAS JONATHAN BOOSE	
SID No. (If no SID take fingerprint card for State Patrol)	Date of Birth 6/23/1987
Race: W	Sex: M
Driver License No. BOOSENJ133L3	Driver License State: WA
FBI No.	Local ID No. (CFN): 183023
	Corrections No.
Other	

FINGERPRINTS I attest that I saw the same defendant who appeared in Court on this document affixed his/her fingerprints and signature thereto. Clerk of the Court: _____, Deputy Clerk.
Dated: 8-10-06

DEFENDANT'S SIGNATURE: _____

Seal of the Superior Court STATE OF WASHINGTON Of Clark County

Left four fingers taken simultaneously | Left Thumb | Right Thumb | Right four fingers taken simultaneously



EXHIBIT

5

Superior Ct Clark Co WA		
# 21-1-01329-06		
P	Ident 6	Exhibit 6
State of WA vs. Nicholas McCoshum		
Date 10/10/2022		

CERTIFY that this Document is a true and correct copy of the original now on file and of record in my office and as County Clerk I am the legal custodian thereof. Signed and sealed at Vancouver, Washington date:
This document contains 16 pages.
07-29-2022, 16:43
Deputy Clerk

14 C

SIMPSON

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FILED

AUG 10 2006

JoAnne McBride, Clerk, Clark Co.

SUPERIOR COURT OF WASHINGTON
COUNTY OF CLARK

06 9 05167 9

STATE OF WASHINGTON, Plaintiff, v. JONATHAN BOOSE MCCOSHUM, aka JOHNATHON ALEXANDER BOOSE, aka JONATHAN ALEX BOOSE, aka JOHNATHAN ALEZANDER BOOSE, aka NICHOLAS JONATHON BOOSE, Defendant. SID: WA19845627 DOB: 8/23/1987	No. 06-1-01238-1 **FELONY JUDGMENT AND SENTENCE (FJS)** **PRISON – COMMUNITY PLACEMENT/COMMUNITY CUSTODY** **Clerk's action required;** ☐ **Paragraph 4.5 (SDOSA),** ☒ **4.15.2,** ☒ **5.3,** ☒ **5.6 and** ☐ **6.8**

I. HEARING

1.1 A sentencing hearing was held and the defendant, the defendant's lawyer and the (deputy) prosecuting attorney were present.

II. FINDINGS

There being no reason why judgment should not be pronounced, the Court FINDS:

2.1 CURRENT OFFENSE(S): The defendant was found guilty on August 10, 2006, by ☒ plea ☐ jury-verdict ☐ bench trial of:

COUNT	CRIME	RCW	DATE OF CRIME
01	ROBBERY IN THE SECOND DEGREE	9A.56.190/9A.56.210	6/28/2006

(If the crime is a drug offense, include the type of drug in the second column.)
as charged in the Amended Information.

☐ Additional current offenses are attached in Appendix 2.1.

☐ The Court finds that the defendant is subject to sentencing under **RCW 9.94A.712.**

☐ A special verdict/finding for use of **firearm** was returned on Count(s) _____. RCW 9.94A.602, 533.

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☐ A special verdict/finding for use of **deadly weapon** other than a firearm was returned on Count(s) _____. RCW 9.94A.602, .533.

☐ A special verdict/finding of **sexual motivation** was returned on Count(s) _____. RCW 9.94A.835.

☐ A special verdict/finding for **Violation of the Uniform Controlled Substances Act** was returned on Count(s) _____, RCW 69.50.401 and RCW 69.50.435, taking place in a school, school bus, within 1000 feet of the perimeter of a school grounds or within 1000 feet of a school bus route stop designated by the school district; or in a public park, public transit vehicle, or public transit stop shelter; or in, or within 1000 feet of the perimeter of, a civic center designated as a drug-free zone by a local government authority, or in a public housing project designated by a local governing authority as a drug-free zone.

☐ A special verdict/finding that the defendant committed a crime involving the manufacture of methamphetamine, including its salts, isomers, and salts of isomers, **when a juvenile was present in or upon the premises of manufacture** was returned on Count(s) _____. RCW 9.94A.605, RCW 69.50.401, RCW 69.50.440.

☐ The defendant was convicted of **vehicular homicide** which was proximately caused by a person driving a vehicle while under the influence of intoxicating liquor or drug or by the operation of a vehicle in a reckless manner and is therefore a violent offense. RCW 9.94A.030.

☐ This case involves **kidnapping** in the first degree, kidnapping in the second degree, or unlawful imprisonment as defined in chapter 9A.40 RCW, where the victim is a minor and the offender is not the minor's parent. RCW 9A.44.130

☐ The court finds that the offender has a **chemical dependency** that has contributed to the offense(s). RCW 9.94A.607.

☐ The crimes charged in Count(s) _____ is/are **Domestic Violence** offense(s) as that term is defined in RCW 10.99.020:

☐ Current offenses encompassing the same criminal conduct and counting as one crime in determining the offender score are Count(s) _____. RCW 9.94A.589

☐ Additional misdemeanor crime(s) pertaining to this cause number are contained in a separate Judgment and Sentence.

☒ Other current convictions listed under different cause numbers used in calculating the offender score are (list offense and cause number): #06-1-00690-9 Robbery 2.

2.2 CRIMINAL HISTORY (RCW 9.94A.525):

CRIME	DATE OF SENTENCE	SENTENCING COURT (County & State)	DATE OF CRIME	A or J Adult, Juv.	TYPE OF CRIME
See Attached Criminal History					

☒ Additional criminal history is attached in Appendix 2.2.

☐ The defendant committed a current offense while on community placement (adds one point to score). RCW 9.94A.525.

☐ The court finds that the following prior convictions are one offense for purposes of determining the offender score RCW 9.94A.525: _____

☐ The following prior convictions are not counted as points but as enhancements pursuant to RCW 46.61.520: _____

☐ The State has moved to dismiss count(s) _____.

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2.3 SENTENCING DATA:

COUNT NO.	OFFENDER SCORE	SERIOUS-NESS LEVEL	STANDARD RANGE (not including enhancements)	PLUS ENHANCEMENTS*	TOTAL STANDARD RANGE (including enhancements)	MAXIMUM TERM
01	4	IV	15 MONTHS to 20 MONTHS	✓	15 MONTHS to 20 MONTHS	10 YEARS $20,000

* (F) Firearm, (D) other Deadly Weapons, (V) VUCSA in a protected zone, (VH) Veh. Hom, see RCW 46.61.520, (JP) Juvenile present

☐ Additional current offense sentencing data is attached in Appendix 2.3.

2.4 ☐ EXCEPTIONAL SENTENCE. Substantial and compelling reasons exist which justify an exceptional sentence ☐ above ☐ within ☐ below the standard range for Count(s) _____.

☐ The defendant and the State stipulate that justice is best served by imposition of the exceptional sentence above the standard range and the court finds the exceptional sentence furthers and is consistent with the interests of justice and the purposes of the Sentencing Reform Act.

☐ Aggravating factors were: ☐ stipulated to by the defendant, ☐ admitted by the defendant in the Guilty Plea, ☐ found by the court after the defendant waived jury trial, ☐ found by jury by special interrogatory.

☐ The defendant waives his right to have a jury determine any issues regarding the imposition of an exceptional sentence upward. *Apprendi v. New Jersey, 530 U.S. 466, 120 S. Ct 2348, 147 L. Ed 2d 435 (2000), Blakely v. Washington, ___ U.S. ___, 124 S. Ct. 2531, 159 L. Ed. 2d 403 (2004).*

☐ Findings of fact and conclusions of law are attached in Appendix 2.4. ☐ Jury's special interrogatory is attached. The Prosecuting Attorney ☐ did ☐ did not recommend a similar sentence.

2.5 ABILITY TO PAY LEGAL FINANCIAL OBLIGATIONS. The court has considered the total amount owing, the defendant's past, present and future ability to pay legal financial obligations, including the defendant's financial resources and the likelihood that the defendant's status will change. The court finds that the defendant has the ability or likely future ability to pay the legal financial obligations imposed herein. RCW 9.94A.750/753.

☐ The following extraordinary circumstances exist that make restitution inappropriate (RCW 9.94A.753): _____.

2.6 For violent offenses, most serious offenses, or armed offenders recommended sentencing agreements or plea agreements are ☐ attached ☐ as follows:

_____.

2.7 If no formal written plea agreement exists, the agreement is as set forth in the Defendant's Statement on Plea of Guilty.

III. JUDGMENT

3.1 The defendant is GUILTY of the Counts and Charges listed in Paragraph 2.1 and Appendix 2.1.

3.2 ☐ The Court DISMISSES Counts _____.

☐ The defendant is found NOT GUILTY of Counts _____.

3.3 There ☐ do ☐ do not exist substantial and compelling reasons justifying an exceptional sentence outside the presumptive sentencing range.

IV. SENTENCE AND ORDER

IT IS ORDERED:

4.1 Defendant shall pay to the Clerk of this Court:

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RTN/RJN	$ To be set	Restitution to be paid to: _____ ☒ Victim(s) and amounts to be set by separate court order		RCW 9.94A.750/ .753
PCV	$500.00	Victim Assessment		RCW 7.68.035
	$ _____	DV Penalty Assessment		RCW 10.99.080
CRC		Court Costs, including RCW 9.94A.760, 9.94A.505, 10.01.160, 10.46.190		
	$ 200.00	Criminal filing fee	FRC	RCW 9.94A.505
	$ _____	Witness costs	WFR	RCW 10.01.160 and RCW 2.40.010
	$ _____	Sheriff Service Fees	SFR/SFS/SFW/WRF	RCW 10.01.160 and 36.18.040
	$ _____	Jury Demand Fee $ 250.00	JFR	RCW 10.01.160 and 10.46.190
	$ _____	Extradition costs	EXT	RCW 9.94A.505
	$ _____	Other Costs _____		RCW 9.94A.760
PUB	$700.00 $ _____	Fees for court appointed attorney Trial per diem if applicable		RCW 9.94A.505/ .760/.030
WFR	$_____	Court appointed defense expert and other defense costs		RCW 9.94A.505, .760, 9.94A.030
FCM/MTH	$500.00	Fine		RCW 9A.20.021
CDF/LDI/FCD/ NTF/SAD/SDI	$_____	Drug fund contribution to be paid within two (2) years Fund # ☐ 1015 ☐ 1017 (TF)		RCW 9.94A.760
CLF	$_____	Crime lab fee - ☐ Suspended due to Indigency		RCW 43.43.690
	$100.00	Felony DNA Collection fee (for crimes committed on or after July 1, 2002)		RCW 43.43.7541
RTN/RJN	$_____	Emergency response costs (Vehicular Assault, Vehicular Homicide only, $1000 maximum) To: _____ (List Law Enforcement Agency)		RCW 38.52.430
	$_____	Other Costs for: _____		RCW 9.94A.760

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☒ The above financial obligations do not include all restitution or other legal financial obligations, which may be set by later order of the court. An agreed restitution order may be entered. RCW 9.94A.750/753. A restitution hearing:
☒ shall be set by the prosecutor
☐ is scheduled for _____

☐ Restitution ordered above shall be joint and several with the co-defendants listed in the Information or identified below: _____.

☒ The Department of Corrections/Superior Court Clerk Collections Unit shall immediately issue a Notice of Payroll Deduction. RCW 9.94A.7602, RCW 9.94A.760(8).

☒ All payments shall be made in accordance with the policies of the Superior Court Clerk and on a schedule established by the Department of Corrections/Superior Court Clerk Collections Unit, commencing immediately, unless the court specifically sets forth the rate here:

Not less than $_____ per month commencing _____. RCW 9.94A.760.

☒ The defendant shall report as directed by the Superior Court Clerk and provide financial information as requested. RCW 9.94A.760(7)(b). The defendant shall report in person no later than the close of business on the next working day after the date of sentencing or release from custody. A map has been provided to the defendant showing the location of the Superior Court Clerk Collections Unit, 500 West 8th Street, Suite 50, Vancouver, Washington. The defendant must report any changes in address and phone numbers to the Collections Unit within 72 hours of moving.

☐ In addition to the other costs imposed herein, the Court finds that the defendant has the means to pay for the cost of incarceration and is ordered to pay such costs at the statutory rate of $_____. RCW 9.94A.760

☒ The financial obligations imposed in this judgment shall bear interest from the date of the Judgment until payment in full, at the rate applicable to civil judgments. RCW 10.82.090. An award of costs on appeal against the defendant may be added to the total legal financial obligations. RCW 10.73.160. The defendant shall pay the cost of services to collect unpaid legal financial obligations. This is an annual fee which will be automatically renewed until financial obligations are completed. RCW 9.94A.780 and RCW 36.18.190

4.2 ☒ DNA TESTING. The defendant shall have a biological sample collected for purposes of DNA identification analysis and the defendant shall fully cooperate in the testing. The appropriate agency, the county or Department of Corrections, shall be responsible for obtaining the sample prior to the defendant's release from confinement. RCW 43.43.754.

☐ HIV TESTING. The defendant shall be tested and counseled for HIV as soon as possible and the defendant shall fully cooperate in the testing and counseling. RCW 70.24.340.

Failure to provide the DNA/HIV testing sample is a violation of this Judgment and Sentence and a warrant may be issued to compel compliance.

4.3 The defendant shall not have contact with Shell, Sunny Singh including, but not limited to, personal, verbal, telephonic, electronic, written or contact through a third party for 10 years (not to exceed the maximum statutory sentence).
☐ Supplemental Domestic Violence Protection Order or Antiharassment Order attached as Form 4.3.

4.4 **OTHER:** _____

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4.5 **CONFINEMENT OVER ONE YEAR.** The defendant is sentenced as follows:

(a) **CONFINEMENT.** RCW 9.94A.589. Defendant is sentenced to the following term of confinement in the custody of the Department of Corrections:

15 months on Count 01

Actual number of months of total confinement ordered is: 15

(Add mandatory firearm and deadly weapons enhancement time to run consecutively to other counts, see Section 2.3, Sentencing Data, above).

☐ The confinement time on Count(s) _____ contain a mandatory minimum term of _____.

All counts shall be served concurrently, except for the portion of those counts for which there is a special finding of a firearm or other deadly weapon as set forth above at Section 2.3, and except for the following counts which shall be served consecutively: _____

The term(s) of confinement (sentence) imposed herein shall be served consecutively to any other term of confinement (sentence) which the defendant may be sentenced to under any other cause in either District Court or Superior Court unless otherwise specified herein: TO RUN CONCURRENT WITH #08-1-00690-9 Robbery 2.

Confinement shall commence immediately unless otherwise set forth here: _____

(b) CONFINEMENT. RCW 9.94A.712 (Sex Offenses only): The defendant is sentenced to the following term of confinement in the custody of the DOC:

Count	minimum term	maximum term
01		

(c) Credit for 60 days time served prior to this date is given, said confinement being solely related to the crimes for which the defendant is being sentenced. RCW 9.94A.505

4.6 ☐ **COMMUNITY PLACEMENT** is ordered on Counts _____ for _____ months

☒ **COMMUNITY CUSTODY** is ordered on Counts 1 for a range from 12 to 36 months or for the period of earned release awarded pursuant to RCW 9.94A.728(1) and (2), whichever is longer, and standard mandatory conditions are ordered. [See RCW 9.94A.700 and .705 for community placement offenses which include serious violent offenses, second degree assault, any crime against a person with a deadly weapon finding and Chapter 69.50 or 69.52 RCW offenses not sentenced under RCW 9.94A.660 committed before July 1, 2000. See RCW 9.94A.715 for community custody range offenses, which include sex offenses not sentenced under RCW 9.94A.712 and violent offenses committed on or after July 1, 2000.Community custody follows a term for a sex offense –RCW 9.94A.505. Use paragraph 4.7 to impose community custody following work ethic camp.]

On or after July 1, 2003, DOC shall supervise the defendant if DOC classifies the defendant in the A or B risk categories; or, DOC classifies the defendant in the C or D risk categories and at least one of the following apply:

a) the defendant commited a current or prior:		
i) Sex offense	ii) Violent offense	iii) Crime against a person (RCW 9.94A.411)
iv) Domestic violence offense (RCW 10.99.020)		v) Residential burglary offense
vi) Offense for manufacture, delivery or possession with intent to deliver methamphetamine		
vii) Offense for delivery of a controlled substance to a minor; or attempt, solicitation or conspiracy (vi, vii)		
b) the conditions of community placement or community custody include chemical dependency treatment.		
c) the defendant is subject to supervision under the interstate compact agreement, RCW 9.94A.745.		

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While on community placement or community custody, the defendant shall: (1) report to and be available for contact with the assigned community corrections officer as directed; (2) work at DOC-approved education, employment and/or community restitution (service); (3) not consume controlled substances except pursuant to lawfully issued prescriptions; (4) not unlawfully possess controlled substances while in community custody; (5) pay supervision fees as determined by DOC; and (6) perform affirmative acts necessary to monitor compliance with the orders of the court as required by DOC. The residence location and living arrangements are subject to the prior approval of DOC while in community placement or community custody. Community custody for sex offenders not sentenced under RCW 9.94A.712 may be extended for up to the statutory maximum term of the sentence. Violation of community custody imposed for a sex offense may result in additional confinement.

The defendant shall be on community placement/community custody under the charge of the Department of Corrections and shall follow and comply with the instructions, rules and regulations promulgated by said Department for the conduct of the defendant during the period of community placement/community custody and any other conditions stated in this Judgment and Sentence. The defendant's conditions of Community Placement/Community Custody include the following:

☒ The defendant shall not consume any alcohol.

☐ Defendant shall have no contact with _____.

☐ Defendant shall remain ☐ within ☐ outside of a specified geographical boundary, to wit: _____

☒ Defendant shall not reside in a community protection zone (within 880 feet of the facilities or grounds of a public or private school). (RCW 9.94A.030(8)).

☒ The defendant shall participate in the following crime-related treatment or counseling services: _____

☒ Defendant shall not violate any federal, state or local criminal laws, and shall not be in the company of any person known by him/her to be violating such laws.

☒ Defendant shall not commit any like offenses.

☒ Defendant shall notify his/her community corrections officer within forty-eight (48) hours of any arrest or citation.

☒ Defendant shall not initiate or permit communication or contact with persons known to him/her to be convicted felons, or presently on probation, community supervision/community custody or parole for any offense, juvenile or adult, except immediate family or as authorized by his/her community corrections officer for treatment purposes. Additionally, the defendant shall not initiate or permit communication or contact with the following persons: _____

☒ Defendant shall not have any contact with other participants in the crime, either directly or indirectly.

☒ Defendant shall not initiate or permit communication or contact with persons known to him/her to be substance abusers.

☒ Defendant shall not possess, use or deliver drugs prohibited by the Uniform Controlled Substances Act, or any legend drugs, except by lawful prescription. The defendant shall notify his/her community corrections officer on the next working day when a controlled substance or legend drug has been medically prescribed.

☒ Defendant shall not possess or use any paraphernalia that can be used for the ingestion or processing of controlled substances or that can be used to facilitate the sale or transfer of controlled substances including scales, pagers, cellular phones, police scanners, and hand held electronic scheduling and data storage devices.

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☐ Defendant shall not frequent known drug activity areas or residences.

☐ Defendant shall not use or possess alcoholic beverages ☐ at all ☐ to excess.

The defendant ☐ will ☐ will not be required to take monitored antabuse per his/her community corrections officer's direction, at his/her own expense, as prescribed by a physician.

☐ Defendant shall not be in any place where alcoholic beverages are sold by the drink for consumption or are the primary sale item.

☐ Defendant shall undergo an evaluation for treatment for ☐ substance abuse ☐ mental health ☐ anger management treatment and fully comply with all recommended treatment.

☐ Defendant shall enter into, cooperate with, fully attend and successfully complete all in-patient and outpatient phases of a ☐ substance abuse ☐ mental health ☐ anger management treatment program as established by the community corrections officer and/or the treatment facility.

☐ Defendant shall participate in a **domestic violence perpetrator program** as approved under RCW 26.50.150 and fully comply with all recommended treatment. RCW 9.94A.505 (11).

☐ Based upon the Pre-Sentence Report, the court finds reasonable grounds to exist to believe the defendant is a mentally ill person, and this condition was likely to have influenced the offense. Accordingly, the court orders the defendant to undergo a mental status evaluation and participate in outpatient mental health treatment. Further, the court may order additional evaluations at a later date, if deemed appropriate.

☐ Treatment shall be at the defendant's expense and he/she shall keep his/her account current if it is determined that the defendant is financially able to afford it.

☒ Defendant shall submit to urine, breath or other screening whenever requested to do so by the treatment program staff and/or the community corrections officer.

☐ Defendant shall not associate with any persons known by him/her to be gang members or associated with gangs.

☐ Defendant shall not wear or display any clothing, apparel, insignia or emblems that he/she knows are associated with or represent gang affiliation or membership as determined by the community corrections officer.

☐ Defendant shall not possess any gang paraphernalia as determined by the community corrections officer.

☐ Defendant shall not use or display any names, nicknames or monikers that are associated with gangs.

☐ Defendant shall comply with a curfew, the hours of which are established by the community corrections officer.

☐ Defendant shall attend and successfully complete a shoplifting awareness educational program as directed by the community corrections officer.

☐ Defendant shall attend and successfully complete the Victim Awareness Educational Program as directed by the community corrections officer.

☐ Defendant shall not accept employment in the following field(s):

_____

☐ Defendant shall not possess burglary tools.

☐ Defendant's privilege to operate a motor vehicle is suspended/revoked for a period of one year; two years if the defendant is being sentenced for a vehicular homicide.

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VANCOUVER, WASHINGTON 98666-5000
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07-29-2022, 16:43

- ☐ Defendant shall not operate a motor vehicle without a valid driver's license and proof of liability insurance in his/her possession.
- ☐ Defendant shall not possess a checkbook or checking account.
- ☐ Defendant shall not possess any type of access device or P.I.N. used to withdraw funds from an automated teller machine.
- ☒ Defendant shall submit to affirmative acts necessary to monitor compliance with the orders of the court as required by the Department of Corrections.
- ☒ Defendant shall not be eligible for a Certificate of Discharge until all financial obligations are paid in full and all conditions/requirements of sentence have been completed including no contact provisions.
- ☐ Defendant shall not enter into or frequent business establishments or areas that cater to minor children without being accompanied by a responsible adult. Such establishments may include but are not limited to video game parlors, parks, pools, skating rinks, school grounds, malls or any areas routinely used by minors as areas of play/recreation.
- ☐ Defendant shall not have any unsupervised contact with minors. Minors mean persons under the age of 18 years.
- ☐ Defendant shall enter into, cooperate with, fully attend and successfully complete all in-patient and outpatient phases of a sexual deviancy treatment program as established by the community corrections officer and/or the treatment facility. "Cooperate with" means the offender shall follow all treatment directives, accurately report all sexual thoughts, feelings and behaviors in a timely manner and cease all deviant sexual activity.
- ☐ Defendant shall submit to periodic polygraph examinations at the direction of his/her community corrections officer to ensure compliance with the conditions of community placement/custody.
- ☐ Defendant shall submit to periodic plethysmograph examinations at the direction of his/her community corrections officer to ensure compliance with the conditions of community placement/custody.
- ☐ Defendant shall not possess or use any pornographic material, defined as any pictorial material displaying direct physical stimulation of unclothed genitals, masturbation, sodomy (i.e. bestiality or oral or anal intercourse), flagellation or torture in the context of a sexual relationship, or emphasizing the depiction of adult or child human genitals: provided however, that works of art or of anthropological significance shall not be deemed to be within the foregoing definition as defined in RCW 9.68.130(2).or any equipment of any kind used for sexual gratification and defendant shall not frequent establishments that provide such materials or equipment for view or sale.
- ☐ If the defendant is removed/deported by the U.S. Immigration and Customs Enforcement, the community custody time is tolled during that time that the defendant is not reporting for supervision in the United States. The defendant shall not enter the United States without the knowledge and permission of U.S. Immigration and Customs Enforcement. If the defendant re-enters the United States, he/she shall immediately report to the Department of Corrections for supervision.
- ☒ Defendant shall sign necessary release of information documents as required by the Department of Corrections.

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☐ Defendant shall adhere to the following additional crime-related prohibitions or conditions of community placement/community custody:

_____

_____

_____

4.7 **OFF LIMITS ORDER** (known drug trafficker) RCW 10.66.020. The following areas are off limit to the defendant while under the supervision of the County Jail or Department of Corrections:

_____

4.8 The Bail or release conditions previously imposed are hereby exonerated and the clerk shall disburse it to the appropriate person(s).

4.9 This case shall not be placed on inactive or mail-in status until all financial obligations are paid in full.

4.10 When there is a reasonable cause to believe that the defendant has violated a condition or requirement of this sentence, the defendant shall allow, and the Department of Corrections can conduct, searches of the defendant's person, residence, automobile or other personal property. Residence searches shall include access, for the purposes of visual inspection, all areas of the residence in which the defendant lives or has exclusive/joint control/access and automobiles owned and possessed by the defendant.

4.11 Other:

_____

_____

V. NOTICES AND SIGNATURES

5.1 **COLLATERAL ATTACK ON JUDGMENT.** Any petition or motion for collateral attack on this judgment and sentence, including but not limited to any personal restraint petition, state habeas corpus petition, motion to vacate judgment, motion to withdraw guilty plea, motion for new trial or motion to arrest judgment, must be filed within one year of the final judgment in this matter, except as provided for in RCW 10.73.100. RCW 10.73.090

5.2 **LENGTH OF SUPERVISION** For an offense committed prior to July 1, 2000, the defendant shall remain under the court's jurisdiction and the supervision of the Department of Corrections for a period up to ten (10) years from the date of sentence or release from confinement, whichever is longer, to assure payment of all legal financial obligations. For an offense committed on or after July 1, 2000, the court shall retain jurisdiction over the offender, for the purposes of the offender's compliance with payment of the legal financial obligations, until the obligation is completely satisfied, regardless of the statutory maximum for the crime. RCW 9.94A.760 and RCW 9.94A505(5). The clerk of the court is authorized to collect unpaid legal financial obligations at any time the offender remains under the jurisdiction of the court for purposes of his or her legal financial obligations. RCW 9.94A.760(4) and RCW 9.94A.753(4).

5.3 **NOTICE OF INCOME-WITHHOLDING ACTION.** If the court has not ordered an immediate notice of payroll deduction in Section 4.1, you are notified that the Department of Corrections may issue a notice of payroll deduction without notice to you if you are more than 30 days past due in monthly payments in an amount equal to or greater than the amount payable for one month. RCW 9.94A.7602. Other income-withholding action under RCW 9.94A may be taken without further notice. RCW 9.94A.7606

5.4 **RESTITUTION HEARING.**

☐ Defendant waives any right to be present at any restitution hearing (sign initials):_____

5.5 Any violation of this Judgment and Sentence is punishable by up to 60 days of confinement per violation. RCW 9.94A.634

5.6 **FIREARMS. You must immediately surrender any concealed pistol license and you may not own, use or possess any firearm unless your right to do so is restored by a court of record.** (The court clerk shall forward a copy of the defendant's driver's license, identicard, or comparable

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identification to the Department of Licensing along with the date of conviction or commitment). RCW 9.41.040, 9.41. 047

Cross off if not applicable:

5.7 **SEX AND KIDNAPPING OFFENDER REGISTRATION.** RCW 9A.44.130, 10.01.200.

1. General Applicability and Requirements: Because this crime involves a sex offense or kidnapping offense involving a minor as defined in Chapter 9A.44.130, you are required to register with the sheriff of the county of the state of Washington where you reside. If you are not a resident of Washington but you are a student in Washington or you are employed in Washington or you carry on a vocation in Washington, you must register with the sheriff of the county of your school, place of employment, or vocation. You must register immediately upon being sentenced unless you are in custody, in which case you must register within 24 hours of your release.

2. Offenders Who Leave the State and Return: If you leave the state following your sentencing or release from custody but later move back to Washington, you must register within 3 business days after moving to this state or within 24 hours after doing so if you are under the jurisdiction of this state's Department of Corrections. If you leave this state following your sentencing or release from custody but later while not a resident of Washington you become employed in Washington, carry out a vocation in Washington, or attend school in Washington, you must register within 3 business days after starting school in this state or becoming employed or carrying out a vocation in this state, or within 24 hours after doing so if you are under the jurisdiction of this state's Department of Corrections.

3. Change of Residence Within State and Leaving the State: If you change your residence within a county, you must send signed, written notice of your change of residence to the sheriff within 72 hours of moving. If you change your residence to a new county within this state, you must send signed written notice of your change of residence to the sheriff of your new county of residence at least 14 days before moving, register with that sheriff within 24 hours of moving and you must give signed written notice of your change of address to the sheriff of the county where last registered within 10 days of moving. If you move out of Washington State, you must also send written notice within 10 days of moving to the county sheriff with whom you last registered in Washington State.

4. Additional Requirements Upon Moving to Another State: If you move to another state, or if you work, carry on a vocation or attend school in another state, you must register a new address, fingerprints and photograph with the new state within 10 days after establishing residence, or after beginning to work, carry on a vocation or attend school in the new state. You must also send written notice within 10 days of moving to the new state or to a foreign country to the county sheriff with whom you last registered in Washington State.

5. Notification Requirement when Enrolling in or Employed by a Public or Private Institution of Higher Education or Common School (K-12): If you are a resident of Washington and you are admitted to a public or private institution of higher education, you are required to notify the sheriff of the county of your residence of your intent to attend the institution within 10 days of enrolling or by the first business day after arriving at the institution, whichever is earlier. If you become employed at a public or private institution of higher education, you are required to notify the sheriff for the county of your residence of your employment by the institution within 10 days of accepting employment or by the first business day after beginning to work at the institution, whichever is earlier. If your enrollment or employment at a public or private institution of higher education is terminated, you are required to notify the sheriff for the county of your residence of your termination of enrollment or employment within 10 days of such termination. (Effective September 1, 2006) If you attend, or plan to attend a public or private school regulated under Title 28A RCW or chapter 72.40 RCW, you are required to notify the sheriff of the county of your residence of your intent to attend the school. You must notify the sheriff within 10 days of enrolling or 10 days prior to arriving at the school to attend classes, whichever is earlier. If you are enrolled on September 1, 2006, you must notify the sheriff immediately. The sheriff shall promptly notify the principal of the school.

6. Registration by a Person Who Does Not Have a Fixed Residence: Even if you do not have a fixed residence, you are required to register. Registration must occur within 24 hours of release in the county where you are being supervised if you do not have a residence at the time of your release from custody. Within 48 hours excluding weekends and holidays after losing your fixed residence you must send signed written notice to the sheriff of the county where you last registered. If you enter a different county and stay there for more than 24 hours, you will be required to register in the new county. You must also report weekly in person to the sheriff of the county where you are registered. The weekly report shall be on a day

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specified by the county sheriff's office, and shall occur during normal business hours. The county sheriff's office may require you to list the locations where you have stayed during the last seven days. The lack of a fixed residence is a factor that may be considered in determining a sex offender's risk level and shall make the offender subject to disclosure of information to the public at large pursuant to RCW 4.24.550

7. Reporting Requirements for Persons Who Are Risk Level II or III: If you have a fixed residence and are designated as a risk level II or III, you must report in person every 90 days to the sheriff of the county where you are registered. Reporting shall be on a day specified by the county sheriff's office, and shall occur during normal business hours. If you comply with the 90-day reporting requirement with no violations for at least five years in the community, you may petition the Superior Court to e relieved of the duty to report every 90 days.

8. Application for a Name Change: If you apply for a name change, you must submit a copy of the application to the county sheriff of the county of your residence and to the state patrol not fewer than five days before the entry of an order granting the name change. If you receive an order changing your name, you must submit a copy of the order to the county sheriff of the county of your residence and to the state patrol within 5 days of the entry of the order. RCW 9A.44.130(7).

5.8 ☐ The court finds that Count _____ is a felony in the commission of which a motor vehicle was used. The court clerk is directed to immediately punch the defendant's Washington Driver's license or permit to drive with a "C" as directed by the Department of Licensing pursuant to RCW 46.20.270.

5.9 If the defendant is or becomes subject to a court-ordered mental health or chemical dependency treatment, the defendant must notify the Department of Corrections and the defendant's treatment information must be shared with DOC for the duration of the defendant's incarceration and supervision. RCW 9.94A.562.

5.10 Persistent Offense Notice

☐ The crime(s) in count(s) _____ is/are "most serious offense(s)." Upon a third conviction of a "most serious offense", the court will be required to sentence the defendant as a persistent offender to life imprisonment without the possibility of early release of any kind, such as parole or community custody. RCW 9.94A.030 (28 & 32(a)), 9.94A.505

☐ The crime(s) in count(s) _____ is/are one of the listed offenses in RCW 9.94A.030 (32)(b). Upon a second conviction of one of these listed offenses, the court will be required to sentence the defendant as a persistent offender to life imprisonment without the possibility of early release of any kind, such as parole or community custody.

5.11 **OTHER:** _____

DONE in Open Court and in the presence of the defendant this date: August 10, 2006.

R. Reid Harris

JUDGE OF THE SUPERIOR COURT

Print Name: Robert Reid Harris

Anthony F. Golik, WSBA #25172
Deputy Prosecuting Attorney

Jeffrey C Simpson, WSBA #34933
Attorney for Defendant

JONATHAN BOOSE MCCOSHUM
Defendant

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07-29-2022, 16:43

SUPERIOR COURT OF WASHINGTON - COUNTY OF CLARK

STATE OF WASHINGTON, Plaintiff,

v.

JONATHAN BOOSE MCCOSHUM, aka JOHNATHON ALEXANDER BOOSE, aka JONATHAN ALEX BOOSE, aka JOHNATHAN ALEZANDER BOOSE, aka NICHOLAS JONATHON BOOSE,

Defendant.

SID: WA19845627
DOB: 6/23/1987

NO. 06-1-01238-1

WARRANT OF COMMITMENT TO STATE OF WASHINGTON DEPARTMENT OF CORRECTIONS

THE STATE OF WASHINGTON, to the Sheriff of Clark County, Washington, and the State of Washington, Department of Corrections, Officers in charge of correctional facilities of the State of Washington:

GREETING:

WHEREAS, the above-named defendant has been duly convicted in the Superior Court of the State of Washington of the County of Clark of the crime(s) of:

COUNT	CRIME	RCW	DATE OF CRIME
01	ROBBERY IN THE SECOND DEGREE	9A.56.190/9A.56.210	6/28/2006

and Judgment has been pronounced and the defendant has been sentenced to a term of imprisonment in such correctional institution under the supervision of the State of Washington, Department of Corrections, as shall be designated by the State of Washington, Department of Corrections pursuant to RCW 72.13, all of which appears of record; a certified copy of said judgment being endorsed hereon and made a part hereof,

NOW, THIS IS TO COMMAND YOU, said Sheriff, to detain the defendant until called for by the transportation officers of the State of Washington, Department of Corrections, authorized to conduct defendant to the appropriate facility, and this is to command you, said Superintendent of the appropriate facility to receive defendant from said officers for confinement, classification and placement in such correctional facilities under the supervision of the State of Washington, Department of Corrections, for a term of confinement of :

COUNT	CRIME	TERM
01	ROBBERY IN THE SECOND DEGREE	15 months

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07-29-2022, 16:43

These terms shall be served concurrently to each other unless specified herein:

The defendant has credit for 60 days served.

The term(s) of confinement (sentence) imposed herein shall be served consecutively to any other term of confinement (sentence) which the defendant may be sentenced to under any other cause in either District Court or Superior Court unless otherwise specified herein: TO RUN CONCURRENT WITH #06-1-00690-9 Robbery 2.

And these presents shall be authority for the same.

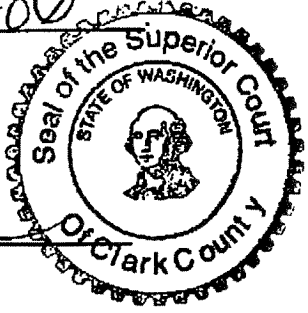
HEREIN FAIL NOT.

WITNESS, Honorable Robert L. Harris

JUDGE OF THE SUPERIOR COURT AND THE SEAL THEREOF THIS DATE: 8-10-06

JOANNE McBRIDE, Clerk of the
Clark County Superior Court

By: Kelly Colen
Deputy



This document certified by Monica Aviles, Deputy Clerk, Clark County, Washington.

07-29-2022, 16:43

CAUSE NUMBER of this case: 06-1-01238-1

VOTING RIGHTS STATEMENT: I acknowledge that my right to vote has been lost due to felony conviction. If I am registered to vote, my voter registration will be cancelled. My right to vote may be restored by: a) A certificate of discharge issued by the sentencing court, RCW 9.94A.637; b) A court order issued by the sentencing court restoring the right, RCW 9.92.066; c) A final order of discharge issued by the indeterminate sentence review board, RCW 9.96.050; or d) A certificate of restoration issued by the governor, RCW 9.96.020. Voting before the right is restored is a class C felony, RCW 92A.84.660.

Defendant's signature: _____.

I am a certified interpreter of, or the court has found me otherwise qualified to interpret, the _____ _____ language, which the defendant understands. I translated this Judgment and Sentence for the defendant into that language.

Interpreter signature/Print name: _____

I, JOANNE McBRIDE, Clerk of this Court, certify that the foregoing is a full, true and correct copy of the Judgment and Sentence in the above-entitled action now on record in this office.

WITNESS my hand and seal of the said Superior Court affixed this date: _____.

Clerk of said County and State, by: _____, Deputy Clerk

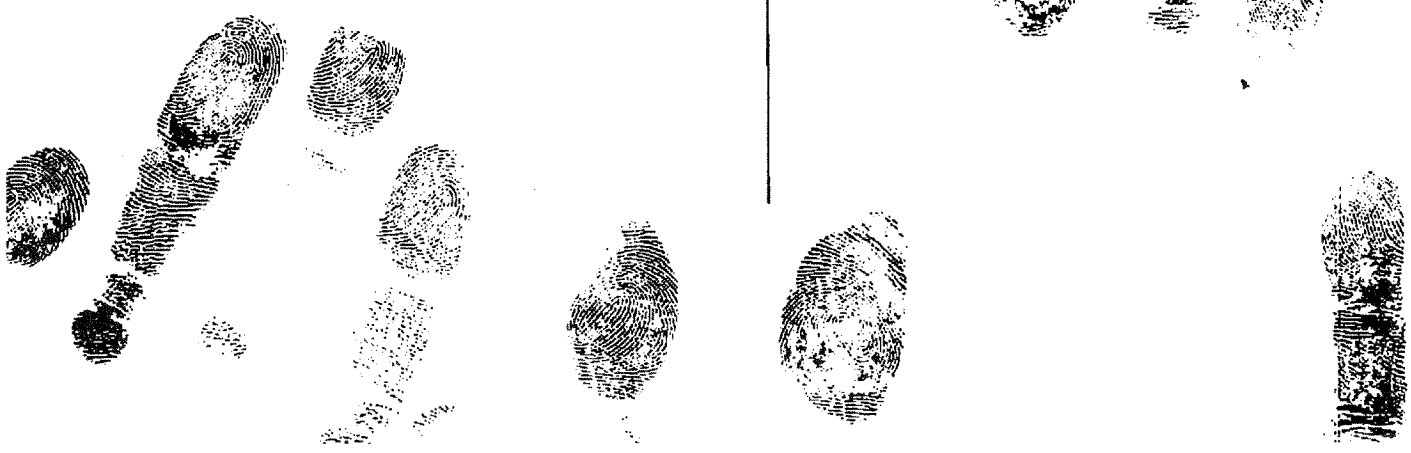
IDENTIFICATION OF DEFENDANT JONATHAN BOOSE MCCOSHUM	
Alias name, SSN, DOB: JOHNATHON ALEXANDER BOOSE; JONATHAN ALEX BOOSE; JOHNATHAN ALEZANDER BOOSE; NICHOLAS JONATHON BOOSE	
SID No. WA19845627 (If no SID take fingerprint card for State Patrol)	Date of Birth 6/23/1987
Race: W	Sex: M
Driver License No. BOOSE-NJ-133L3	Driver License State: WA
FBI No. 834980XB2	Local ID No. (CFN): 183023
	Corrections No.
Other	

FINGERPRINTS I attest that I saw the same defendant who appeared in Court on this document affix his or her fingerprints and signature thereto. Clerk of the Court: _____, Deputy Clerk
Dated: 8-10-22

DEFENDANT'S SIGNATURE: _____

Seal of the Superior Court STATE OF WASHINGTON Clerk County

Left four fingers taken simultaneously	Left Thumb	Right Thumb	Right four fingers taken simultaneously



EXHIBIT

6

MONEY AWARD

Judgment Creditor: State of Oregon
Judgment Debtor: Nicholas Jonathon Alexander Boose

Payees are to be paid as ordered under Monetary Terms.

Defendant is ordered to pay the following monetary totals, including restitution or compensatory fine amounts stated above, which are listed in the Money Award portion of this document:

Type	Amount Owed
Fine - Felony	$400.00
Total	$400.00

The court may increase the total amount owed by adding collection fees and other assessments. These fees and assessments may be added without further notice to the defendant and without further court order.

Subject to amendment of a judgment under ORS 137.107, money required to be paid as a condition of probation remains payable after revocation of probation only if the amount is included in the money award portion of the judgment document, even if the amount is referred to in other parts of the judgment document.

Any financial obligation(s) for conviction(s) of a violation, which is included in the Money Award, creates a judgment lien.

Payment Schedule

Payment of the fines, fees, assessments, and/or attorney's fees noted in this and any subsequent Money Award shall be scheduled by the clerk of the court pursuant to ORS 161.675.

Payable to:

Clatsop County Circuit Court
PO Box 835
Astoria, Oregon 97103
P: 503.325.8555
F: http://courts.oregon.gov/clatsop

Clark County Superior Court
21-1-01329-06
STATE OF WA VS.
MCCOSHUM
P | 7 | 7
DATE: 10/10/22

Dated the 15 day of April, 20 16

Signed: 4/15/2016 03:53 PM

Signed: Paula Brownhill

Paula J Brownhill **Circuit Court Judge Paula Brownhill**

Signed: 4/19/2016 10:50

IN THE CIRCUIT COURT OF THE STATE OF OREGON FOR THE COUNTY OF CLATSOP

State of Oregon, Plaintiff	)	
	)	Case No.: 16CR13129
vs.	)	
	)	**JUDGMENT**
Nicholas Jonathon Alexander Boose, Defendant	)	Case File Date: 03/07/2016 District Attorney File #: 16-379

DEFENDANT

True Name: Nicholas Jonathon Alexander Boose
Date Of Birth: 06/23/1987

Sex: Male
State Identification No (SID): 20893963OR

Alias(es): Nicholas Jonathon A McCoshum, Nicholas Jonathon Alexander McCoshum

CIRCUIT COURT. CLATSOP COUNTY * STATE OF OREGON *

Certified True Copy Of The Original
Dated This 20 Day of July 2022
Eighteenth Judicial District, State of Oregon
Trial Court Administration
By C. I. Teague
CAT TEAGUE
4 PAGES

HEARING

Proceeding Date: 04/15/2016
Judge: Paula J Brownhill
Court Reporter: Recording-CLT300, FTR

Defendant appeared in person and was in custody. The court determined that the defendant was indigent for purposes of court-appointed counsel, and the court appointed counsel for the defendant. The defendant was represented by Attorney(s) Kristopher A Kaino, OSB Number 900754. Plaintiff appeared by and through Attorney(s) RONALD BROWN, OSB Number 791726. Defendant knowingly waived two day waiting period before sentencing.

COUNT(S)

It is adjudged that the defendant has been convicted on the following count(s):

Count 1 : Attempt to Commit a Class B Felony - Kidnapping in the Second Degree

Count number 1, Attempt to Commit a Class B Felony - Kidnapping in the Second Degree, 161.405(2)(c), Felony Class C, a lesser included charge, committed on or about 03/05/2016. Conviction is based upon a No Contest Plea on 04/15/2016.

Sentencing Guidelines

The Crime Severity Classification (CSC) on Count Number 1 is 9 and the Criminal History Classification (CHC) is F.

Incarceration

Defendant is sentenced to the custody of Oregon Dept of Corrections, for a period of 44 month(s). Defendant is remanded to the custody of the Clatsop Sheriff for transportation to the Oregon Dept of Corrections for service of this sentence. Defendant may receive credit for time served. Defendant may received good time and earned time credits. The sentence in count two shall run concurrent with the sentence in count one.

The Defendant may be considered by the executing or releasing authority for any form of Reduction in Sentence, Conditional or Supervised Release Program, Temporary Leave From Custody, Work Release authorized by law for which the Defendant is otherwise eligible at the time of sentencing. The Defendant may be considered for release on post-prison supervision under ORS 421.508(4) upon successful completion of an alternative incarceration program.

Post-Prison Supervision

The term of Post-Prison Supervision is 16 month(s). If the Defendant violates any of the conditions of post-prison supervision, the defendant shall be subject to sanctions including the possibility of additional imprisonment in accordance with the rules of the State Sentencing Guidelines Board.

Statutory Provisions

Defendant is ordered to submit blood or buccal sample and thumbprint pursuant to ORS 137.076.

Monetary Terms

Defendant shall be required to pay the following amounts on this count:

Fees and Assessments: Payable to the Court.

Type	Amount	Modifier	Reduction	Actual Owed
Fine - Felony	$200.00			$200.00
Total	$200.00			$200.00

COUNTS DISPOSED WITH NO CONVICTION

Count # 3, Interfering w/ Peace/Parole and Probation Officer is Dismissed.

Count # 4, Harassment is Dismissed.

Count # 5, Harassment is Dismissed.

If convicted of a felony or a crime involving domestic violence, you may lose the right to buy, sell, transport, receive, or possess a firearm, ammunition, or other weapons in both personal and professional endeavors pursuant to ORS 166.250, ORS 166.291, ORS 166.300, and/or 18 USC 922(g).

EXHIBIT

7

Vancouver Police Department

Report Number 2021-014379 - *Offense / Incident Report Cover Sheet

REPORT DATE / TIME	JURNAME / PRECINCT / DISTRICT / BEAT / NHOOD	EVENT START DATE / TIME - EVENT END DATE / TIME
Jul 11, 2021 04:50		Jul 10, 2021 20:28 - 22:22

OFFENSE-1

OFFENSE CODE	WEAPON / FORCE INVOLVED
RCW_9A.36.011_ASSAULT I	Firearm

OFFENSE LOCATION	OFFENSE START DATE
12186 NW LOWER RIVER RD, VANCOUVER, WA 98660	Jul 10, 2021 20:28

OFFENSE-2

OFFENSE CODE	WEAPON / FORCE INVOLVED
RCW_9.41.040.1_UNLAWFUL POSSESSION FIREARM I/EX-CON	Firearm

OFFENSE LOCATION	OFFENSE START DATE	OFFENSE END DATE
12186 NW LOWER RIVER RD, VANCOUVER, WA 98660	Jul 10, 2021 20:28	Jul 10, 2021 20:40

INVOLVED PERSONS

INVOLVEMENT	NAME	HOME ADDRESS	DOB / ESTIMATED AGE RANGE	RACE	SEX
	CONFIDENTIAL				
S-1, P-2	NICHOLAS JONATHON MCCOSHUM	4501 NE 51ST ST VANCOUVER, WA 98661	1987-06-23	White	Male
P-3	JESSY DEVIN ASHFORD SR	4023 SE 16TH AVE PORTLAND, OR 97202	1981-04-03	Unknown	Male
P-4	artem pohrybniak	5011 NE 137TH AVE VANCOUVER, WA 98682	1997-01-15	White	Male

INVOLVED ORGANIZATIONS

INVOLVEMENT	NAME	ADDRESS
V-2	Society	

INVOLVED PROPERTY

STATUS	ITEM CATEGORY	DESCRIPTION
Property, Evidence/Seized	PAPERS-MISC	Inspection Report bearing Suspect's name
Property, Evidence/Seized	MISCELLANEOUS	Black Powder gun cylinder for Evidence item #2
Property, Evidence/Seized	Pistol, Black Powder	Blue Steel Revolver with wooden grip, black powder
Property, Evidence/Seized	PAPERS-MISC	Insurance card with Suspect name in Glove Compartment
Property, Evidence/Seized	MISCELLANEOUS	Lube for black powder, Muzzle loaders
Property, Safekeeping	KEY (ALL TYPES)	key chain with 6 keys and two scannable cards

REPORTING OFFICER SIGNATURE / DATE	SUPERVISOR SIGNATURE / DATE
Ly Yong #1455 Jul 11, 2021 05:20 (e-signature)	Sean Dumas #1543 Jul 11, 2021 07:16 (e-signature)
PRINT NAME	PRINT NAME
Ly Yong #1455	Sean Dumas #1543

STATUS	ITEM CATEGORY	DESCRIPTION
Property, Evidence/Seized	MISCELLANEOUS	Percussion caps for black powder
STATUS	ITEM CATEGORY	DESCRIPTION
Property, Evidence/Seized	AMMUNITION	29 loose .44 Caliber ball ammo, located inside digital camo backpack
STATUS	ITEM CATEGORY	DESCRIPTION
Property, Evidence/Seized	MISCELLANEOUS	Percussion caps removed from gun
STATUS	ITEM CATEGORY	DESCRIPTION
Property, Evidence/Seized	MISCELLANEOUS	Black Gun Powder
STATUS	ITEM CATEGORY	DESCRIPTION
Property, Evidence/Seized	MONEY	US currency $1 bill

INVOLVED VEHICLES

STATUS	ITEM CATEGORY	MAKE / MODEL / PRIMARY COLOR
Vehicle, Involved	Pickup Truck	Ford: Ford / F-150: F-150 / White (WHI)

NARRATIVE

Synopsis

Daniel Peshkov reported the fishing line belonging to Nicholas McCoshum got tangled in Daniel's boat propeller which he had to cut in order to get it untangled which caused Nicholas to be angry and demand money and his contact information. During the confrontation, Nicholas retrieved a revolver style gun from his pocket and stuck it in Daniel's face and told him " I want to shoot you right now, you're lucky I'm not fully insane." McCoshum was located, arrested and booked for Assault I.

Narrative

On July 10, 2021 I was working uniform patrol in a fully marked police vehicle in the City of Vancouver as unit 2B12. At about 2032 hours units were dispatched to 12186 NW Lower River Rd, the boat launch north of Frenchman's Bar Park regarding a disturbance with a firearm.

Daniel Peshkov called 9-11 and reported a male at the lake was angry at him because his fishing line got caught in the propeller of his boat. Since it was tangled in his propeller, Daniel had no choice but cut the line which upset the owner of the line and pole. Shortly after, when Daniel returned to shore and was in the process of loading his boat, he was confronted by the angry fisherman, who demanded money and then his name and phone number. The male then pulled out a gun and pointed it at Daniel's face saying he wanted to shoot Daniel. The suspect male drove away and was associated with an older model white Ford F-150 pickup.

Daniel was able to get video of the suspect's vehicle from the dashcam on his own vehicle but the license plate was not legible from the footage. The suspect drove away in the pickup a few minutes prior to the 9-11 call.

While en route to the boat launch, Ofc. C. Ahn and Ofc. C. Hogg who were in a two-person unit patrol vehicle, advised on the radio they believed they had located the suspect pickup at the minit-mart on Fourth Plain Blvd and Fruit Valley Rd and they were going to attempt a traffic stop on the vehicle. I was the second unit to arrive and as more units arrived to assist, a high-risk traffic stop was conducted. The passenger asked if he could get out of the truck and got out of the vehicle before being instructed. He was compliant with verbal commands and I detained him in handcuffs, checking the handcuffs for tightness and fit and I double-locked them. He was placed in the back of a patrol vehicle. I then assisted in handcuffing the driver who was detained in handcuffs and placed in the back of a patrol vehicle. The driver was identified as Nicholas McCoshum and the passenger was identified as Jessy Ashford.

I went to contact the reporting person, Daniel Peshkov, at the boat launch, but he had already started driving east into the city and flagged me down at the Mill Plain and Fourth Plain split, so I directed him park his vehicle in the lot across the street to the south of the minit mart to be interviewed.

Daniel told me in substance he was out on his boat on the Columbia River. He initially said he was at Vancouver Lake Park but later corrected himself saying he was at the boat launch farther north from Frenchman's Bar Park. He said while on his boat he saw fishing line had gotten caught in his propeller and was tangled up and so he cut the line because he was unable to untangle it. He said the fisherman was on the shore and was yelling at him and had flipped him the middle finger. Daniel said he attempted to avoid engaging with the angry male but when he was bringing in his boat, the suspect male pulled up next to him in his vehicle and demanded money from Daniel for his

REPORTING OFFICER SIGNATURE / DATE	SUPERVISOR SIGNATURE / DATE
Ly Yong #1455 Jul 11, 2021 05:20 (e-signature)	Sean Dumas #1543 Jul 11, 2021 07:16 (e-signature)
PRINT NAME	PRINT NAME
Ly Yong #1455	Sean Dumas #1543

pole which was worth $1600 but Daniel told him he did not have that kind of money. The male then demanded Daniel's phone number and name and wrote his information on a dollar bill that the male located inside of his vehicle. He told Daniel he wanted to call Daniel's phone number to make sure the phone number Daniel gave him was actually his phone number.

Daniel said he was standing next to the window of the truck and the suspect male was sitting in his vehicle in the driver seat and there was only a few feet of distance in between them. Daniel was holding up his phone to prove to the suspect male he was being honest about his contact information and the suspect male pulled a gun out of the front pocket of his hoody and "stuck it in his face" and said "I want to shoot you right now, you're lucky I'm not fully insane." Daniel said he believed the male was going to shoot him and was in fear for his life. The gun was described as a black revolver style gun that had a long barrel. The suspect then drove away and shortly after Daniel called the police. Daniel said he had received a phone calls from an unknown number and a voicemail was left for him, one demanding the fishing pole back which Daniel did not have nor could have recovered from the cut line and another saying they knew where he lived and would have the cops sent to his house. I was able to hear the voicemail and confirmed the voicemail had been left and from the phone number 575-332-8783. (It was later discovered the phone number belonged to Ashford and Ashford said he had left the messages on McCoshum's behalf to attempt to recover the fishing pole).

Daniel said he has a dashcam on his truck but because the suspect had pulled over beside him so that video of the assault was not available because it is not in frame and he was not sure if the video captured any of the audio from the incident. He sent me the video from his cell phone to my department issued phone and I viewed the video and a still photo of the video which showed the suspect's truck which had the same window decal and also the bed cover as the vehicle that was stopped by Ofc. Ahn and Ofc. Hogg. I could not hear any audio from the video.

I advised Daniel there were two males we had detained across the street who may or may not be the males involved in the incident. I made a FaceTime video call with Ofc. Ahn and conducted a digital field show up. In the frame you can see the rear passenger seat, with the door wide open and McCoshum is sitting in the back so that his face and clothing are in full view. Daniel looked at my phone and without hesitation said "yes, that's him! 100%!" I advised Ofc. Ahn a positive identification had been made for McCoshum as the involved suspect.

Daniel's friend, Artem Pohrybniak, was with Daniel in the boat and confirmed his statement about the fishing line being caught in the propeller. He was not present during the firearm incident because he was with the boat when Daniel was retrieving the truck to get the boat when he was confronted by McCoshum.

Units at the traffic stop advised me a firearm was visible inside of the truck that could be seen when looking into the vehicle from the outside. Ashford also confirmed the dollar bill with the name and phone number was also inside the truck.

Since McCoshum pointed a firearm in Daniel's face and used a deadly weapon in a manner that likely could produce great bodily harm, probable cause exists to arrest McCoshum for Assault I.

McCoshum was later transported to the jail where he was booked for the above charge. His vehicle was sealed with evidence tape and towed to the secured lot of VPD West Precinct pending a search warrant. See other involved officer's supplemental reports for further details.

Daniel also expressed fear of retaliation by the suspect and requested his contact information not be disclosed in the report.

Attachments

-video and digital photographs

Recommendation

Forward to Superior Court for prosecution. Forward to NRT West for information/review.

REPORTING OFFICER SIGNATURE / DATE	SUPERVISOR SIGNATURE / DATE
Ly Yong #1455 Jul 11, 2021 05:20 (e-signature)	Sean Dumas #1543 Jul 11, 2021 07:16 (e-signature)
PRINT NAME	PRINT NAME
Ly Yong #1455	Sean Dumas #1543

NOTE: Summarized report. More data regarding this report may exist in the RMS.
Mark43 RMS Form v2.0 generated by A. Kelley on Jul 13, 2021 09:25.

EXHIBIT

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Report Number 2021-014379 - Supplement - 1 Report

REPORT DATE / TIME	EVENT START DATE / TIME - EVENT END DATE / TIME	REPORT WRITER
Jul 11, 2021 01:55	Jul 10, 2021 20:28 - 22:22	Brandon Riedel #1695

SUPPLEMENT TYPE

Patrol Supplemental

NARRATIVE

Synopsis

Supplemental report for statement obtained.

Narrative

On 07/11/2021 I was dispatched to a reported brandishing that occurred 12186 NW Lower River RD, Vancouver WA. Prior to my arrival, other units initiated a traffic stop on the suspect vehicle near the intersection of W Fourth Plain Blvd, and Fruit Valley RD.

I made contact with the front passenger of the suspect vehicle identified as Jessy Ashford. Jessy reported that he and the driver identified as Nicholas McCoshum were out fishing, when a passing boat on the river ran over a pole/line belonging to Nicholas. Jessy said the boat took the pole with them.

While on shore Jessy reported that Nicholas left in the truck alone, and tried to find the driver/boat owner who took the fishing pole. Jessy stated he stayed behind and did not observe any interaction between Jessy and the party reporting the brandishing. Jessy stated Nicholas never mentioned a gun, and did not have a gun to his knowledge. Jessy did state that when Nicholas returned he gave him a dollar bill stating it was the boat owners phone number, and Jessy called it leaving a voicemail regarding the fishing pole taken.

According to Jessy after the above mentioned phone call, they left the area and were contacted by police at the traffic stop.

Other Officer's on scene determined the suspect vehicle would be seized for a search warrant. Jessy reported he needed his wallet from the vehicle, and said it was in a black plastic bag in the front passenger area. Corporal Junker advised that prior to seizing the vehicle we could obtain the bag with the wallet. I grabbed the black plastic bag with the wallet from the floor of the passenger side, which also had some convenient store snacks in it. Nothing else was taken from the vehicle, and it was sealed by Officer Balada on scene.

Prior to Jessy leaving the scene he agreed to show me the phone log where he called the reporting party. I took a photograph of the log, and then Jessy deleted the number from his phone. Jessy was released from handcuffs, and left the scene.

I had no further involvement.

Attachments

none

Recommendation

Attach to original report

ATTACHMENTS ADDENDUM

FILE NAME	UPLOAD DATE/TIME	UPLOADED BY
IMG_1766_1_.JPG	Jul 11, 2021 05:59	B. Riedel #1695

This report was generated in Mark43 and the e-signature was affixed using the undersigned officer's unique login and password. I certify (or declare) under penalty of perjury under the laws of the State of Washington that the foregoing is true and correct to the best of my knowledge and belief.

ELECTRONICALLY SIGNED	DATE	PLACE
Brandon Riedel	07/11/2021	Vancouver Police Department, WA

REPORTING OFFICER SIGNATURE / DATE	SUPERVISOR SIGNATURE / DATE
Brandon Riedel #1695 Jul 11, 2021 06:00 (e-signature)	Sean Dumas #1543 Jul 11, 2021 07:18 (e-signature)
PRINT NAME	PRINT NAME
Brandon Riedel #1695	Sean Dumas #1543

EXHIBIT

9

NO. _____

IN THE COURT OF APPEALS OF THE
STATE OF WASHINGTON
DIVISION TWO

IN RE THE PERSONAL RESTRAINT OF NICHOLAS JONATHON McCOSHUM, Petitioner.	)	DECLARATION OF COUNSEL

I, Sean Devlin, under penalty of perjury of the Laws of the State of Washington, declare:

1. I am over 18 years old, I am of sound mind, and I have personal knowledge of the information I state in this Declaration.

2. I am licensed to practice law in Washington State (WSBA No. 34554).

3. I am an attorney on the Washington State Office of Public Defense Post-Conviction Project.

4. I was assigned to represent the Petitioner in the above-captioned action.

5. During my representation, I conducted investigation including:

a) Collected and reviewed the trial record from Clark County Superior Cause Number 21-1-01329-06;

b) Collected and reviewed the appellate record from Cause No. 57561-2-II;

c) Contacted the Department of Corrections to obtain intake, classification, and release information regarding the Petitioner;

d) Examined discovery;

e) Interviewed appellate counsel, Jennifer Sweigert, about her representation;

f) Attempted to interview trial counsel, David Commisa;

g) Submitted a public records request to the Clark County Office of Public Defense Office and reviewed responsive documents; and

h) Submitted a public records request to the Vancouver Police Department and reviewed responsive records.

6. In its response to my public records request, the Vancouver Police Department provided me with report tracing Mr. McCoshum's antique pistol from the Bureau of Alcohol, Tobacco, Firearms, and Explosives which is attached as Exhibit No. 7 to the personal restraint petition.

7. On July 23, 2024, after not receiving responses to two prior emails, I phoned Mr. Commisa to request Mr. McCoshum's case file and his assistance to review the case. Mr. Commisa responded he could not assist me unless his supervisor gave him permission. Mr. Commisa told me he would speak with his supervisor.

8. During the phone call on July 23, I also asked Mr. Commisa if he would be able to assist Mr. McCoshum obtain new counsel for the resentencing. Mr. Commisa replied the resentencing was on his calendar and he intended to represent Mr. McCoshum. I advised him of the likely conflict and he responded it would be "up to the judge."

9. After our phone conversation, I attempted to contact Mr. Commisa several times by email and by leaving voicemails. He never responded.

10. I agreed to represent Mr. McCoshum *pro bono* at his resentencing. After I filed my notice of appearance, the Clark County Prosecuting Attorney's Office provided me with discovery.

11. In the discovery, the State provided, *inter alia*, Officer Riedel's report and a photograph he took of Mr. Ashford's phone log, which are attached as exhibits to the Personal Restraint Petition.

12. The Vancouver Police Department also provided Officer Riedel's report in response to my public records request.

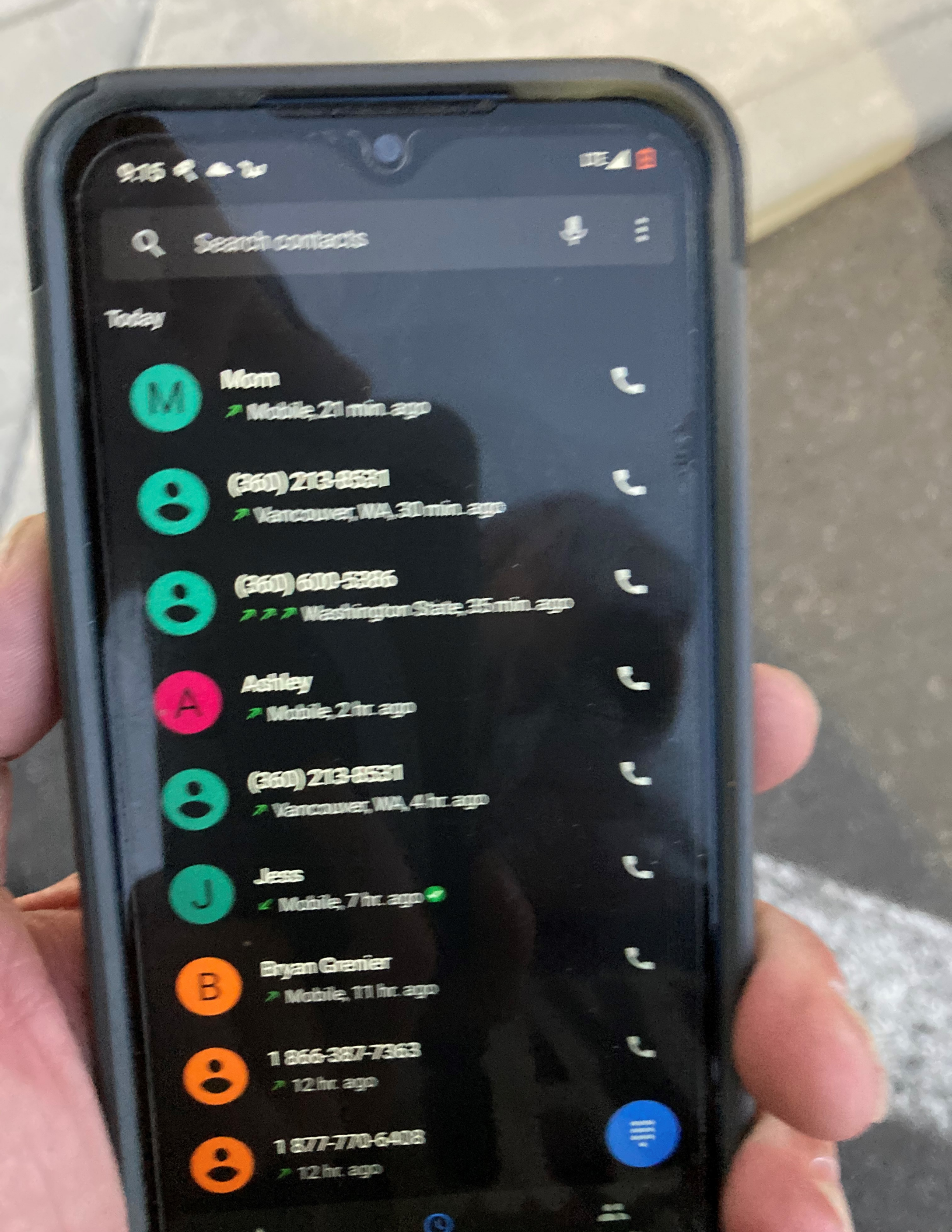
13. The discovery did not contain the ATF Trace Report, which was provided in response to the public records request.

Signed at Everett, Washington, this, the 31st day of January, 2025.

Sean Devlin, WSBA No. 34554

EXHIBIT

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Search contacts
Today
Mom
Mobile, 21 min ago
(360) 213-8531
Vancouver, WA, 30 min ago
(360) 600-5866
Washington State, 35 min ago
Ashley
Mobile, 2 hr. ago
(360) 213-8531
Vancouver, WA, 4 hr. ago
Jess
Mobile, 7 hr. ago
Bryan Grenier
Mobile, 11 hr. ago
1 866-387-7363
12 hr. ago
1 877-770-6418
12 hr. ago

EXHIBIT

11

NO. _____

IN THE COURT OF APPEALS OF THE
STATE OF WASHINGTON
DIVISION TWO

IN RE THE PERSONAL RESTRAINT OF NICHOLAS JONATHON A. McCOHSUM, Petitioner.	)	DECLARATION OF THE PETITIONER

I, Nicholas McCoshum, under penalty of perjury of the Laws of the State of Washington, declare:

1. I am over 18 years old, I am of sound mind, and I have personal knowledge of the information I declare in this document.

2. I am the Petitioner in this matter and I was the Defendant in Clark County Superior Court Cause Number 21-1-01329-06.

3. Under Cause Number 21-1-01329-06, I charged with and convicted of:

   a. Second degree assault and

   b. First degree unlawful possession of a firearm.

4. I am currently imprisoned and serving the sentence imposed under No. 21-1-01329-06.

5. My defense attorney was David Commisa.

6. Mr. Commisa never reviewed any police reports with me.

7. Mr. Commisa never shared transcripts or notes from witness interviews. I do not believe he interviewed any witnesses.

8. I explained to Mr. Commisa that I had done internet research and believed I was entitled to possess an antique black powder firearm. I also informed him that I legally purchased the antique black powder firearm and the seller completed a background check.

9. I told Mr. Commissa that I took special education classes and I have been diagnosed with mental health issues. Mr. Commissa never requested that I be evaluated and he didn't try to obtain any of my records.

10. Mr. Commisa never discussed with me the possibility of stipulating to my prior convictions to try and reduce what the jury learned about my criminal history.

11. Mr. Commissa called me as a witness at my trial, but he did not explain to me what to expect, how I should answer questions, what information was important, or what to expect during cross-examination.

12. During the trial, I told Mr. Commissa that I did not call Mr. Peshkov, like the prosecutor portrayed it, but Mr. Commissa did not attempt to challenge that I did call him.

13. Before my sentencing, Mr. Commissa did not discuss with me what I should say to the judge or if I shouldn't talk to the judge.

David commisa Didnt get me a new attorney for resentencing also was founded previously infective

Signed at Walla walla, Washington, this, the 17 Dec day of, 2024.

Nicholas McCoshum
Petitioner

EXHIBIT

12

DEPARTMENT OF JUSTICE

BUREAU OF ALCOHOL, TOBACCO, FIREARMS AND EXPLOSIVES

NATIONAL TRACING CENTER

Phone:(800) 788-7133 Fax:(800) 578-7223

Print Date: July 15, 2021

FIREARMS TRACE SUMMARY

Trace Number: T20210296577 Request Date: July 12, 2021 Completion Date: July 15, 2021

VALERIE MCALISTER
VANCOUVER POLICE DEPARTMENT
605 E EVERGREEN BL
VANCOUVER, WA 98661
PHONE: (360) 487-7404 Ext:
FAX (360) 487-7411

Badge No: **1636**
Investigation No: **2021-014379**

FIREARM INFORMATION

Manufacturer: F.LLI PIETTA, FABRICA D'ARM...
Model:
Caliber: 44
Serial Number: **R529340**
Type: REVOLVER
Country: ITALY
Importer: UNKNOWN IMPORTER
Obliterated:
Identifying Marks:
NIBIN:
Gang Name:

RECOVERY INFORMATION

Recovery Date: 07/11/2021
Time to Crime:
2800 NE STAPLETON RD
VANCOUVER, WA 98661
Possessor: NICHOLAS JONATHON MCCOSHUM
DOB: 01/23/1987
POB: UNITED STATES

ADMINISTRATIVE INFORMATION

SUMMARY OF RESULTS

THE WEAPON DESCRIBED IN THIS REPORT IS NOT A FIREARM AS DEFINED BY FEDERAL LAW, 18USC921(A)(3) AND IS OUTSIDE OF THE ATF REGULATIONS REGARDING RECORDKEEPING AND LICENSING. (UNFINISHED FRAME/RECEIVER, BB/PELLET GUN, BLACK POWDER/MUZZLE LOADER OR MANUFACTURED ON OR BEFORE 1898) NO FURTHER TRACE WILL BE CONDUCTED BY THE NATIONAL TRACING CENTER (NTC). HOWEVER, YOU MAY WISH TO CONTACT THE MANUFACTURER DIRECTLY TO SEE IF THEY CAN PROVIDE YOU WITH INFORMATION THAT MAY ASSIST YOU WITH YOUR INVESTIGATION.

Additional Remarks:

Uncontrolled Controlled Information

The information in this report must be validated prior to use in any criminal proceedings.

EXHIBIT

13

NO. _____

IN THE COURT OF APPEALS OF THE
STATE OF WASHINGTON
DIVISION TWO

IN RE THE PERSONAL RESTRAINT OF NICHOLAS JONATHON McCOSHUM, Petitioner.	))))))	PETITIONER'S FINANCIAL CERTIFICATION

I, Nicholas Jonathon McCoshum, under penalty of perjury of the Laws of the State of Washington, certify:

1. I am the Petitioner in this matter.

2. I am pursing this Personal Restraint Petition in good faith.

3. I was found indigent at the trial and appellate stages of my criminal case and I received appointed counsel.

4. I have been confined in the Washington State Department of Corrections since November 2022;

5. Prior to my incarceration, I was not employed and receiving government assistance.

6. I own no real property.

7. I own no stocks, bonds, or similar investments.

8. I have no bank accounts or savings.

9. I am unable to contribute any funds to prosecute this Petition.

10. I will immediately notify the court of any change in my financial position.

11. I am asking the court to waive the filing fee and associated costs as well as the costs of the reproduction and distribution of any briefing.

Signed at Walla Walla, Washington, this, the 6 day of Feb, 2025.

Nicholas Jonathon McCoshum
Petitioner

SEAN DEVLIN, ATTORNEY-AT-LAW

February 21, 2025 - 4:15 PM

Filing Personal Restraint Petition

Transmittal Information

Filed with Court:	Court of Appeals Division II
Appellate Court Case Number:	Case Initiation
Trial Court Case Title:	Mccoshum, Nicholas Jonathon a
Trial Court Case Number:	21-1-01329-06 (JIS Number: 21-1-01329-1)
Trial Court County:	Clark Superior Court
Signing Judge:	Derek Vanderwood
Judgment Date:	

The following documents have been uploaded:

- PRP_Personal_Restraint_Petition_20250221160335D2782798_0664.pdf
  This File Contains:
  Personal Restraint Petition
  The Original File Name was mccoshum personal restraint petition.pdf
- PRP_Verification_by_Petitioner_20250221160335D2782798_0841.pdf
  This File Contains:
  Verification by Petitioner
  The Original File Name was mccoshum verification.pdf

A copy of the uploaded files will be sent to:

- colin.hayes@clark.wa.gov

Comments:

Sender Name: Sean Devlin - Email: sean@devlawnw.com
Address:
PO BOX 2403
EVERETT, WA, 98213-0403
Phone: 253-495-2049

Note: The Filing Id is 20250221160335D2782798